

Evidence Act 1893

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EVIDENCE ACT 1893

2020 REVISED EDITION

This revised edition incorporates all amendments up to and including 1 December 2021 and comes into operation on 31 December 2021

An Act relating to the law of evidence.

[1 July 1893]

PART 1

RELEVANCY OF FACTS

Preliminary

Short title

1. This Act is the Evidence Act 1893.

Application of Parts 1, 2 and 3

2.—(1) Parts 1, 2 and 3 apply to all judicial proceedings in or before any court, but not to affidavits presented to any court or officer nor to proceedings before an arbitrator.

(2) All rules of evidence not contained in any written law, so far as such rules are inconsistent with any of the provisions of this Act, are repealed.

Interpretation

- 3.—(1) In Parts 1, 2 and 3, unless the context otherwise requires —

“child abuse offence” means any offence specified in Part 1 of the First Schedule, and includes attempting to commit, abetting the commission of, or being a party to a criminal conspiracy to commit, such an offence;

“copy of a document” includes —

- (a) in the case of a document falling within paragraph (d) but not paragraph (e) of the definition of “document”, a transcript of the sounds or other data embodied in it;
- (b) in the case of a document falling within paragraph (e) but not paragraph (d) of that definition, a reproduction or still reproduction of the image or images embodied in it, whether enlarged or not;
- (c) in the case of a document falling within paragraphs (d) and (e) of that definition, such a transcript together with such a still reproduction; and
- (d) in the case of a document not falling within paragraph (e) of that definition of which a visual image is embodied in a document falling within that paragraph, a reproduction of that image, whether enlarged or not,

and any reference to a copy of the material part of a document must be construed accordingly;

“country” includes a territory;

“court” includes all Judges and Magistrates and, except arbitrators, all persons legally authorised to take evidence;

“document” includes, in addition to a document in writing —

- (a) any map, plan, graph or drawing;
- (b) any photograph;
- (c) any label, marking or other writing which identifies or describes anything of which it forms a part, or to which it is attached by any means whatsoever;
- (d) any disc, tape, soundtrack or other device in which sounds or other data (not being visual images) are embodied so as to be capable (with or without the aid of some other equipment) of being reproduced therefrom;
- (e) any film (including microfilm), negative, tape, disc or other device in which one or more visual images are embodied so as to be capable (with or without the aid of some other equipment) of being reproduced therefrom; and
- (f) any paper or other material on which there are marks, impressions, figures, letters, symbols or perforations having a meaning for persons qualified to interpret them;

“electronic record” means a record generated, communicated, received or stored by electronic, magnetic, optical or other means in an information system or transmitted from one information system to another;

“evidence” includes —

- (a) all statements which the court permits or requires to be made before it by witnesses in relation to matters of fact under inquiry: such statements are called oral evidence; and
- (b) all documents produced for the inspection of the court: such documents are called documentary evidence;

“fact” includes —

- (a) any thing, state of things, or relation of things, capable of being received by the senses; and
- (b) any mental condition of which any person is conscious;

Illustrations

- (a) That there are certain objects arranged in a certain order in a certain place is a fact.
- (b) That a man heard or saw something is a fact.
- (c) That a man said certain words is a fact.
- (d) That a man holds a certain opinion, has a certain intention, acts in good faith or fraudulently, or uses a particular word in a particular sense, or is or was at a specified time conscious of a particular sensation, is a fact.
- (e) That a man has a certain reputation is a fact.

“fact in issue” includes any fact from which either by itself or in connection with other facts the existence, non-existence, nature or extent of any right, liability or disability asserted or denied in any suit or proceeding necessarily follows;

Illustration

A is accused of the murder of *B*.

At *A*’s trial the following facts may be in issue:

- (a) that *A* caused *B*’s death;
- (b) that *A* intended to cause *B*’s death;
- (c) that *A* had received grave and sudden provocation from *B*;
- (d) that *A* at the time of doing the act which caused *B*’s death was by reason of unsoundness of mind incapable of knowing its nature.

“sexual offence” means any offence specified in Part 2 of the First Schedule, and includes attempting to commit, abetting the commission of, or being a party to a criminal conspiracy to commit, such an offence.

[\[4/2012; 16/2016; 20/2018\]](#)

“Relevant”

- (2) One fact is said to be relevant to another when the one is connected with the other

in any of the ways referred to in the provisions of this Act relating to the relevancy of facts.

“Proved”

(3) A fact is said to be “proved” when, after considering the matters before it, the court either believes it to exist or considers its existence so probable that a prudent person ought, under the circumstances of the particular case, to act upon the supposition that it exists.

“Disproved”

(4) A fact is said to be “disproved” when, after considering the matters before it, the court either believes that it does not exist or considers its non-existence so probable that a prudent person ought, under the circumstances of the particular case, to act upon the supposition that it does not exist.

“Not proved”

(5) A fact is said to be “not proved” when it is neither proved nor disproved.

(6) For the purposes of sections 23, 128, 130 and 131, a reference to “advocate or solicitor” in those sections includes a reference to the following:

- (a) any public officer in the Attorney-General’s Chambers when he or she acts as an advocate or a solicitor;
- (b) the Chief Public Defender, a Deputy Chief Public Defender, an Assistant Chief Public Defender or a public defender appointed under section 3 of the Public Defenders Act 2022, when he or she acts as an advocate or a solicitor.

[Act 23 of 2022 wef 01/12/2022]

(7) In sections 23, 128A, 130 and 131, a “legal counsel” means —

- (a) a person (by whatever name called) who is an employee of an entity employed to undertake the provision of legal advice or assistance in connection with the application of the law or any form of resolution of legal disputes;
- (aa) any Deputy Attorney-General; or
- (b) a Judicial Service Officer or Legal Service Officer —
 - (i) working in a ministry or department of the Government or an Organ of State as legal adviser to that ministry or department or

Organ of State; or

- (ii) seconded as legal adviser to any statutory body established or constituted by or under a public Act for a public function.

[4/2012; 41/2014]
[Act 33 of 2021 wef 14/01/2022]

Presumptions

4.—(1) Whenever it is provided by this Act that the court may presume a fact, it may either regard such fact as proved unless and until it is disproved, or may call for proof of it.

(2) Whenever it is directed by this Act that the court is to presume a fact, the court is to regard such fact as proved unless and until it is disproved.

(3) When one fact is declared by this Act to be conclusive proof of another, the court is, on proof of the one fact, to regard the other as proved, and is not to allow evidence to be given for the purpose of disproving it.

Relevancy of facts

Evidence may be given of facts in issue and relevant facts

5. Evidence may be given in any suit or proceeding of the existence or non-existence of every fact in issue and of such other facts as are hereinafter declared to be relevant, and of no others.

Explanation.—This section does not enable any person to give evidence of a fact which the person is disentitled to prove by any provision of the law for the time being in force relating to civil procedure.

Illustrations

- (a) *A* is tried for the murder of *B* by beating *B* with a club with the intention of causing *B*'s death.

At *A*'s trial the following facts are in issue:

- (i) *A*'s beating *B* with the club;
- (ii) *A*'s causing *B*'s death by such beating;
- (iii) *A*'s intention to cause *B*'s death.

(b) *A*, a party to a suit, does not comply with a notice given by *B*, the other party, to produce for *B*'s inspection a document referred to in *A*'s pleadings. This section does not enable *A* to put such document in evidence on *A*'s behalf in such suit, otherwise than in accordance with the conditions prescribed by the Rules of Court or the Family Justice Rules, as the case may be.

[27/2014]

Relevancy of facts forming part of same transaction

6. Facts which, though not in issue, are so connected with a fact in issue as to form part of the same transaction are relevant, whether they occurred at the same time and place or at different times and places.

Illustrations

(a) *A* is accused of the murder of *B* by beating *B*. Whatever was said or done by *A* or *B* or the bystanders at the beating or so shortly before or after it as to form part of the transaction is a relevant fact.

(b) *A* is accused of waging war against the Government by taking part in an armed insurrection in which property is destroyed, troops are attacked and gaols are broken open. The occurrence of these facts is relevant as forming part of the general transaction, though *A* may not have been present at all of them.

(c) *A* sues *B* for a libel contained in a letter forming part of a correspondence. Letters between the parties relating to the subject out of which the libel arose and forming part of the correspondence in which it is contained are relevant facts though they do not contain the libel itself.

(d) The question is whether certain goods ordered from *B* were delivered to *A*. The goods were delivered to several intermediate persons successively. Each delivery is a relevant fact.

Facts which are the occasion, cause or effect of facts in issue

7. Facts which are the occasion, cause or effect, immediate or otherwise, of relevant facts or facts in issue, or which constitute the state of things under which they happened or which afforded an opportunity for their occurrence or transaction, are relevant.

Illustrations

(a) The question is whether *A* robbed *B*.

The facts that shortly before the robbery *B* went to a fair with money in *B*'s possession, and that *B* showed or mentioned the fact that *B* had it to third persons, are relevant.

(b) The question is whether *A* murdered *B*. Marks on the ground produced by a struggle at or near the place where the murder was committed are relevant facts.

(c) The question is whether *A* poisoned *B*. The state of *B*'s health before the symptoms ascribed to poison and habits of *B* known to *A* which afforded an opportunity for the administration of poison, are relevant facts.

Motive, preparation and previous or subsequent conduct

8.—(1) Any fact is relevant which shows or constitutes a motive or preparation for any fact in issue or relevant fact.

(2) The conduct of any party or of any agent to any party to any suit or proceeding in reference to such suit or proceeding or in reference to any fact in issue therein or relevant thereto, and the conduct of any person an offence against whom is the subject of any proceeding, is relevant if such conduct influences or is influenced by any fact in issue or relevant fact, and whether it was previous or subsequent thereto.

Explanation 1.—The word “conduct” in this section does not include statements unless those statements accompany and explain acts other than statements; but this explanation is not to affect the relevancy of statements under any other section of this Act.

Explanation 2.—When the conduct of any person is relevant any statement made to the person or in his or her presence and hearing which affects such conduct is relevant.

Illustrations

(a) *A* is tried for the murder of *B*.

The facts that *A* murdered *C*, that *B* knew that *A* had murdered *C* and that *B* had tried to extort money from *A* by threatening to make *B*'s knowledge public, are relevant.

(b) *A* sues *B* upon a bond for the payment of money. *B* denies the making of the bond.

The fact that at the time when the bond was alleged to be made *B* required money for a particular purpose is relevant.

(c) *A* is tried for the murder of *B* by poison.

The fact that before the death of *B*, *A* procured poison similar to that which was administered to *B* is relevant.

(d) The question is whether a certain document is the will of *A*.

The facts that not long before the date of the alleged will *A* made inquiry into matters to which the provisions of the alleged will relate, that *A* consulted lawyers in reference to making the will, and that *A* caused drafts of other wills to be prepared of which *A* did not approve are relevant.

(e) *A* is accused of a crime.

The facts that either before, or at the time of or after the alleged crime, *A* provided evidence which would tend to give to the facts of the case an appearance favourable to *A*, or that *A* destroyed or concealed evidence or prevented the presence or procured the absence of persons who might have been witnesses, or suborned persons to give false evidence respecting it, are relevant.

(f) The question is whether *A* robbed *B*.

The facts that after *B* was robbed, *C* said in *A*'s presence: "The police are coming to look for the man who robbed *B*", and that immediately afterwards *A* ran away are relevant.

(g) The question is whether *A* owes *B* \$10,000.

The facts that *A* asked *C* to lend *A* money, and that *D* said to *C* in *A*'s presence and hearing: "I advise you not to trust *A* for *A* owes *B* \$10,000", and that *A* went away without making any answer, are relevant facts.

(h) The question is whether *A* committed a crime.

The fact that *A* absconded after receiving a letter warning *A* that inquiry was being made for the criminal, and the contents of the letter, are relevant.

(i) *A* is accused of a crime.

The facts that after the commission of the alleged crime *A* absconded, or was in possession of property or the proceeds of property acquired by the crime, or attempted to conceal things which were or might have been used in committing it, are relevant.

(j) The question is whether *A* was raped.

The facts that shortly after the alleged rape *A* made a complaint relating to the crime, the circumstances under which and the terms in which the complaint was made, are relevant.

The fact that without making a complaint *A* said that she had been raped is not relevant as conduct under this section, though it may be relevant as a dying declaration under section 32(1)(a), or as corroborative evidence under section 159.

(k) The question is whether *A* was robbed.

The fact that soon after the alleged robbery *A* made a complaint relating to the offence, the circumstances under which and the terms in which the complaint was made, are relevant.

The fact that *A* said *A* had been robbed without making any complaint is not relevant as conduct under this section, though it may be relevant as a dying declaration under section 32(1)(a), or as corroborative evidence under section 159.

[4/2012]

Facts necessary to explain or introduce relevant facts

9. Facts necessary to explain or introduce a fact in issue or relevant fact, or which support or rebut an inference suggested by a fact in issue or relevant fact, or which establish the identity of any thing or person whose identity is relevant, or fix the time or place at which any fact in issue or relevant fact happened or which show the relation of parties by whom any such fact was transacted, are relevant insofar as they are necessary for that purpose.

Illustrations

(a) The question is whether a given document is the will of *A*.

The state of *A*'s property and of *A*'s family at the date of the alleged will may be relevant facts.

(b) *A* sues *B* for libel imputing disgraceful conduct to *A*; *B* affirms that the matter alleged to be libellous is true.

The position and relations of the parties at the time when the libel was published may be relevant facts as introductory to the facts in issue.

The particulars of a dispute between *A* and *B* about a matter unconnected with the alleged libel are irrelevant, though the fact that there was a dispute may be relevant if it affected the relations between *A* and *B*.

(c) *A* is accused of a crime.

The fact that soon after the commission of the crime *A* absconded from *A*'s house is relevant under section 8 as conduct subsequent to and affected by facts in issue.

The fact that at the time when *A* left home *A* had sudden and urgent business at the place to which *A* went is relevant as tending to explain the fact that *A* left home suddenly.

The details of the business on which *A* left are not relevant, except insofar as they are necessary to show that the business was sudden and urgent.

(d) *A* sues *B* for inducing *C* to break a contract of service made by *C* with *A*. *C* on leaving *A*'s service says to *A*: "I am leaving you because *B* has made me a better offer". This statement is a relevant fact as explanatory of *C*'s conduct, which is relevant as a fact in issue.

(e) *A* accused of theft is seen to give the stolen property to *B* who is seen to give it to *A*'s wife. *B* says as *B* delivers it: "*A* says you are to hide this". *B*'s statement is relevant as explanatory of a fact which is part of the transaction.

(f) *A* is tried for a riot and is proved to have marched at the head of a mob. The cries of the mob are relevant as explanatory of the nature of the transaction.

(g) *A* seeks to adduce evidence against *B* in the form of an electronic record. The method and manner in which the electronic record was (properly or improperly) generated, communicated, received or stored (by *A* or *B*), the reliability of the devices and the circumstances in which the devices were (properly or improperly) used or operated to generate, communicate, receive or store the electronic record, may be relevant facts (if the contents are relevant) as authenticating the electronic record and therefore as explaining or introducing the electronic record, or identifying it as the relevant electronic record to support a finding that the record is, or is not, what its proponent *A* claims.

[4/2012]

Things said or done by conspirator in reference to common design

10. Where there is reasonable ground to believe that 2 or more persons have conspired together to commit an offence or an actionable wrong, anything said, done or written by any one of such persons, in reference to their common intention after the time when such intention was first entertained by any one of them, is a relevant fact as against each of the persons believed to be so conspiring, as well for the purpose of proving the existence of the conspiracy as for the purpose of showing that any such person was a party to it.

Illustrations

Reasonable ground exists for believing that *A* has joined in a conspiracy to wage war against the Government.

The facts that *B* procured arms in Europe for the purpose of the conspiracy, *C* collected money in Malacca for a like object, *D* persuaded persons to join the conspiracy in Province Wellesley, *E* published writings advocating the object in view at Singapore, and *F* transmitted from Singapore to *G* at Jakarta the money which *C* had collected at Malacca, and the contents of a letter written by *H* giving an account of the conspiracy are each relevant, both to prove the existence of the conspiracy and to prove *A*'s complicity in it, although *A* may have been ignorant of all of them, and although the persons by whom they were done were strangers to *A*, and although they may have taken place before *A* joined the conspiracy or after *A* left it.

When facts not otherwise relevant become relevant

11. Facts not otherwise relevant are relevant —

- (a) if they are inconsistent with any fact in issue or relevant fact;
- (b) if by themselves or in connection with other facts they make the existence or non-existence of any fact in issue or relevant fact highly probable or improbable.

Illustrations

- (a) The question is whether *A* committed a crime at Singapore on a certain day.

The fact that on that day *A* was at Penang is relevant.

The fact that near the time when the crime was committed *A* was at a distance from the place where it was committed, which would render it highly improbable, though not impossible, that *A* committed it, is relevant.

- (b) The question is whether *A* committed a crime.

The circumstances are such that the crime must have been committed either by *A*, *B*, *C* or *D*. Every fact which shows that the crime could have been committed by no one else and that it was not committed by either *B*, *C* or *D* is relevant.

In suits for damages facts tending to enable court to determine amount are relevant

12. In suits in which damages are claimed, any fact which will enable the court to determine the amount of damages which ought to be awarded is relevant.

Facts relevant when right or custom is in question

13. Where the question is as to the existence of any right or custom, the following facts are relevant:

- (a) any transaction by which the right or custom in question was created, claimed, modified, recognised, asserted or denied or which was inconsistent with its existence; and
- (b) particular instances in which the right or custom was claimed, recognised or exercised or in which its exercise was disputed, asserted or departed from.

Illustration

The question is whether *A* has a right to a fishery. A deed conferring the fishery on *A*'s ancestors, a mortgage of the fishery by *A*'s father, a subsequent grant of the fishery by *A*'s father irreconcilable with the mortgage, particular instances in which *A*'s father exercised the right, or in which the exercise of the right was stopped by *A*'s neighbours, are relevant facts.

Facts showing existence of state of mind or of body or bodily feeling

14. Facts showing the existence of any state of mind, such as intention, knowledge, good faith, negligence, rashness, ill will or goodwill towards any particular person, or showing the existence of any state of body or bodily feeling, are relevant when the existence of any such state of mind or body or bodily feeling is in issue or relevant.

Explanation 1.—A fact relevant as showing the existence of a relevant state of mind must show that the state of mind exists not generally but in reference to the particular matter in question.

Explanation 2.—But where upon the trial of a person accused of an offence the previous commission by the accused of an offence is relevant within the meaning of this section, the previous conviction of such person is also a relevant fact.

Illustrations

(a) *A* is accused of receiving stolen goods, knowing them to be stolen. It is proved that *A* was in possession of a particular stolen article.

The fact that at the same time *A* was in possession of many other stolen articles is relevant as tending to show that *A* knew each and all of the articles of which *A* was in possession to be stolen.

(b) *A* is accused of fraudulently delivering to another person a counterfeit coin, which at the time when *A* delivered it *A* knew to be counterfeit.

The fact that at the time of its delivery *A* was in possession of a number of other pieces of counterfeit coin is relevant.

The fact that *A* had been previously convicted of delivering to another person as genuine a counterfeit coin, knowing it to be counterfeit, is relevant.

(c) *A* sues *B* for damage done by a dog of *B*'s, which *B* knew to be ferocious.

The facts that the dog had previously bitten *X*, *Y* and *Z* and that they had made complaints to *B* are relevant.

(d) The question is whether *A*, the acceptor of a bill of exchange, knew that the name of the payee was fictitious.

The fact that *A* had accepted other bills drawn in the same manner before they could have been transmitted to *A* by the payee, if the payee had been a real person, is relevant, as showing that *A* knew that the payee was a fictitious person.

(e) *A* is accused of defaming *B* by publishing an imputation intended to harm the reputation of *B*.

The fact of previous publications by *A* respecting *B* showing ill will on the part of *A* towards *B* is relevant, as proving *A*'s intention to harm *B*'s reputation by the particular publication in question.

The facts that there was no previous quarrel between *A* and *B* and that *A* repeated the matter complained of as *A* heard it, are relevant as showing that *A* did not intend to harm the reputation of *B*.

(f) *A* is sued by *B* for fraudulently representing to *B* that *C* was solvent, whereby *B* being induced to trust *C*, who was insolvent, suffered loss.

The fact that at the time when *A* represented *C* to be solvent *C* was supposed to be solvent by his or her neighbours, and by persons dealing with him or her, is relevant, as showing that *A* made the representation in good faith.

(g) *A* is sued by *B* for the price of work done by *B* upon a house of which *A* is owner by the order of *C*, a contractor.

A's defence is that *B*'s contract was with *C*.

The fact that *A* paid *C* for the work in question is relevant as providing that *A* did in good faith make over to *C* the management of the work in question, so that *C* was in a position to contract with *B* on *C*'s own account and not as agent for *A*.

(h) *A* is accused of the dishonest misappropriation of property which *A* had found, and the question is whether, when *A* appropriated it *A* believed in good faith that the real owner could not be found.

The fact that public notice of the loss of the property had been given in the place where *A* was, is relevant as showing that *A* did not in good faith believe that the real owner of the property could not be found.

The fact that *A* knew or had reason to believe that the notice was given fraudulently by *C* who had heard of the loss of the property and wished to set up a false claim to it, is relevant as showing that the fact that *A* knew of the notice did not disprove *A*'s good faith.

(i) *A* is charged with shooting at *B* with intent to kill *B*.

In order to show *A*'s intent, the fact of *A*'s having previously shot at *B* may be proved.

(j) *A* is charged with sending threatening letters to *B*.

Threatening letters previously sent by *A* to *B* may be proved as showing the intention of the letters.

(k) The question is whether *A* has been guilty of cruelty towards *B* his wife.

Expression of their feelings towards each other shortly before or after the alleged cruelty are relevant facts.

(l) The question is whether *A*'s death was caused by poison.

Statements made by *A* during *A*'s illness as to *A*'s symptoms are relevant facts.

(m) The question is, what was the state of *A*'s health at the time when an assurance on *A*'s life was effected? Statements made by *A* as to the state of *A*'s health at or near the time in question are relevant facts.

(n) *A* sues *B* for negligence in providing *A* with a motor car for hire not reasonably fit for use whereby *A* was injured.

The fact that *B*'s attention was drawn on other occasions to the defect of that particular motor car is relevant.

The fact that *B* was habitually negligent about the motor cars which *B* let to hire is irrelevant.

(o) *A* is tried for the murder of *B* by intentionally shooting *B* dead.

The fact that *A* on other occasions shot at *B* is relevant as showing *A*'s intention to shoot *B*.

The fact that *A* was in the habit of shooting at people with intent to murder them is irrelevant.

(p) *A* is tried for a crime.

The fact that *A* said something indicating an intention to commit that particular crime is relevant.

The fact that *A* said something indicating a general disposition to commit crimes of that class is irrelevant.

Facts bearing on question whether act was accidental or intentional

15. When there is a question whether an act was accidental or intentional or done with a particular knowledge or intention, the fact that such act formed part of a series of similar occurrences, in each of which the person doing the act was concerned, is relevant.

Illustrations

(a) *A* is accused of burning down *A*'s house in order to obtain money for which it is insured.

The facts that *A* lived in several houses successively, each of which *A* insured, in each of which a fire occurred, and after each of which fires *A* received payment from a different insurance office, are relevant as tending to show that the fire was not accidental.

(b) *A* is employed to receive money from the debtors of *B*. It is *A*'s duty to make entries in a book showing the amounts received by *A*. *A* makes an entry showing that on a particular occasion *A* received less than *A* really did receive.

The question is whether this false entry was accidental or intentional.

The facts that other entries made by *A* in the same book are false, and that the false entry is in each case in favour of *A*, are relevant.

(c) *A* is accused of fraudulently delivering to *B* a counterfeit dollar.

The question is whether the delivery of the dollar was accidental.

The facts that soon before or soon after the delivery to *B*, *A* delivered counterfeit dollars to *C*, *D* and *E* are relevant as showing that the delivery to *B* was not accidental.

Existence of course of business when relevant

16. When there is a question whether a particular act was done, the existence of any course of business, according to which it naturally would have been done, is a relevant fact.

Illustrations

(a) The question is whether a particular letter was despatched.

The facts that it was the ordinary course of business for all letters put in a certain place to be carried to the post, and that that particular letter was put in that place, are relevant.

(b) The question is whether a particular letter reached *A*.

The facts that it was posted in due course and was not returned are relevant.

Admissions and confessions

Admission and confession defined

17.—(1) An admission is a statement, oral or documentary, which suggests any inference as to any fact in issue or relevant fact, and which is made by any of the persons and under the circumstances hereinafter mentioned.

(2) A confession is an admission made at any time by a person accused of an offence, stating or suggesting the inference that the person committed that offence.

Admission by party to proceeding or his or her agent, by suitor in representative character, etc.

18.—(1) Statements made by a party to the proceeding or by an agent to any such party whom the court regards under the circumstances of the case as expressly or impliedly authorised by him or her to make them are admissions.

(2) Statements made by parties to suits, suing or sued in a representative character, are not admissions unless they were made while the party making them held that character.

(3) Statements made by —

- (a) persons who have any proprietary or pecuniary interest in the subject matter of the proceeding, and who make the statement in their character of persons so interested; or
- (b) persons from whom the parties to the suit have derived their interest in the subject matter of the suit,

are admissions if they are made during the continuance of the interest of the persons making the statements.

Admissions by persons whose position must be proved as against party to suit

19. Statements made by persons whose position or liability it is necessary to prove as against any party to the suit are admissions if the statements would be relevant as against the persons in relation to the position or liability in a suit brought by or against them, and if they are made while the person making them occupies the position or is subject to the liability.

Illustration

A undertakes to collect rents for B.

B sues *A* for not collecting rent due from *C* to *B*.

A denies that rent was due from *C* to *B*.

A statement by *C* that he or she owed *B* rent is an admission and is a relevant fact, as against *A*, if *A* denies that *C* did owe rent to *B*.

Admissions by persons expressly referred to by party to suit

20. Statements made by persons to whom a party to the suit has expressly referred for information in reference to a matter in dispute are admissions.

Illustration

The question is whether a horse sold by *A* to *B* is sound.

A says to *B*: “Go and ask *C*, *C* knows all about it”. *C*’s statement is an admission.

Proof of admissions against persons making them and by or on their behalf

21. Admissions are relevant and may be proved as against the person who makes them or his or her representative in interest; but they cannot be proved by or on behalf of the person who makes them or by his or her representative in interest except in the following cases:

- (a) an admission may be proved by or on behalf of the person making it when it is of such a nature that, if the person making it were dead, it would be relevant as between third persons under section 32;
- (b) an admission may be proved by or on behalf of the person making it when it consists of a statement of the existence of any state of mind or body relevant or in issue, made at or about the time when such state of mind or body existed and is accompanied by conduct rendering its falsehood improbable;
- (c) an admission may be proved by or on behalf of the person making it if it is relevant otherwise than as an admission.

Illustrations

(a) The question between *A* and *B* is whether a certain deed is or is not forged. *A* affirms that it is genuine; *B* that it is forged.

A may prove a statement by *B* that the deed is genuine, and *B* may prove a statement by *A* that the deed is forged; but *A* cannot prove a statement by *A* that the deed is genuine, nor can *B* prove a statement by *B* that the deed is forged.

(*b*) *A*, the captain of a ship, is tried for casting the ship away.

Evidence is given to show that the ship was taken out of the ship's proper course.

A produces a book kept by *A* in the ordinary course of *A*'s business, showing observations alleged to have been taken by *A* from day to day, and indicating that the ship was not taken out of the ship's proper course. *A* may prove these statements because they would be admissible between third parties if *A* were dead under section 32(1)(*b*).

(*c*) *A* is accused of a crime committed by *A* at Singapore. *A* produces a letter written by *A* and dated at Penang on that day, and bearing the Penang postmark of that day.

The statement in the date of the letter is admissible, because if *A* were dead it would be admissible under section 32(1)(*b*).

(*d*) *A* is accused of receiving stolen goods, knowing them to be stolen.

A offers to prove that *A* refused to sell them below their value.

A may prove these statements though they are admissions, because they are explanatory of conduct influenced by facts in issue.

(*e*) *A* is accused of fraudulently having in *A*'s possession counterfeit coin which *A* knew to be counterfeit.

A offers to prove that *A* asked a skilful person to examine the coin as *A* doubted whether it was counterfeit or not, and that that person did examine it and told *A* it was genuine.

A may prove these facts for the reasons stated in illustration (*d*).

[4/2012]

When oral admissions as to contents of documents are relevant

22. Oral admissions as to the contents of a document are not relevant unless the party proposing to prove them shows that he or she is entitled to give secondary evidence of the contents of the document under the rules contained in this Act, or unless the genuineness of a document produced is in question.

Admissions in civil cases when relevant

23.—(1) In civil cases, no admission is relevant if it is made —

- (a) upon an express condition that evidence of it is not to be given; or
- (b) upon circumstances from which the court can infer that the parties agreed together that evidence of it should not be given.

[\[4/2012\]](#)

(2) Nothing in subsection (1) is to be taken —

- (a) to exempt any advocate or solicitor from giving evidence of any matter of which he or she may be compelled to give evidence under section 128; or
- (b) to exempt any legal counsel in an entity from giving evidence of any matter of which he or she may be compelled to give evidence under section 128A.

[\[4/2012\]](#)

24. *[Repealed by Act 15 of 2010]*

25. *[Repealed by Act 15 of 2010]*

26. *[Repealed by Act 15 of 2010]*

27. *[Repealed by Act 15 of 2010]*

28. *[Repealed by Act 15 of 2010]*

29. *[Repealed by Act 15 of 2010]*

30. *[Repealed by Act 15 of 2010]*

Admissions not conclusive proof but may estop

31. Admissions are not conclusive proof of the matters admitted, but they may operate as estoppels under the provisions in this Act.

Cases in which statement of relevant fact by person who is dead or cannot be found, etc., is relevant

32.—(1) Subject to subsections (2) and (3), statements of relevant facts made by a person (whether orally, in a document or otherwise), are themselves relevant facts in the following cases:

when it relates to cause of death;

- (a) when the statement is made by a person as to the cause of the person's death, or as to any of the circumstances of the transaction which resulted in the person's death, in cases in which the cause of that person's death comes into question; such statements are relevant whether the person who made them was or was not at the time when they were made under expectation of death, and whatever may be the nature of the proceeding in which the cause of the person's death comes into question;

or is made in course of trade, business, profession or other occupation;

- (b) when the statement was made by a person in the ordinary course of a trade, business, profession or other occupation and in particular when it consists of —

- (i) any entry or memorandum in books kept in the ordinary course of a trade, business, profession or other occupation or in the discharge of professional duty;
- (ii) an acknowledgment (whether written or signed) for the receipt of money, goods, securities or property of any kind;
- (iii) any information in market quotations, tabulations, lists, directories or other compilations generally used and relied upon by the public or by persons in particular occupations; or
- (iv) a document constituting, or forming part of, the records (whether past or present) of a trade, business, profession or other occupation that are recorded, owned or kept by any person, body or organisation carrying out the trade, business, profession or other occupation,

and includes a statement made in a document that is, or forms part of, a record compiled by a person acting in the ordinary course of a trade, business, profession or other occupation based on information supplied by other persons;

or against interest of maker;

- (c) when the statement is against the pecuniary or proprietary interest of the person making it, or when, if true, it would expose the person or would have exposed the person to a criminal prosecution or to a suit for damages;

or gives opinion as to public right or custom or matters of general interest;

- (d) when the statement gives the opinion of any such person as to the existence of

any public right or custom or matter of public or general interest, of the existence of which if it existed the person would have been likely to be aware, and when such statement was made before any controversy as to such right, custom or matter had arisen;

or relates to existence of relationship;

- (e) when the statement relates to the existence of any relationship by blood, marriage or adoption between persons as to whose relationship by blood, marriage or adoption the person making the statement had special means of knowledge, and when the statement was made before the question in dispute was raised;

or is made in will or deed relating to family affairs;

- (f) when the statement relates to the existence of any relationship by blood, marriage or adoption between persons deceased, and is made in any will or deed relating to the affairs of the family to which any such deceased person belonged, or in any family pedigree or upon any tombstone, family portrait or other thing on which such statements are usually made, and when such statement was made before the question in dispute was raised;

or in document relating to transaction mentioned in section 13(a);

- (g) when the statement is contained in any deed or other document which relates to any such transaction as is mentioned in section 13(a);

or is made by several persons and expresses feelings relevant to matter in question;

- (h) when the statement was made by a number of persons and expressed feelings or impressions on their part relevant to the matter in question;

or is made by person who is compellable but refuses to give evidence;

- (i) when the statement was made by a person who, being compellable to give evidence on behalf of the party desiring to give the statement in evidence, attends or is brought before the court, but refuses to be sworn or affirmed, or is sworn or affirmed but refuses to give any evidence;

or is made by person who is dead or who cannot be produced as witness;

- (j) when the statement is made by a person in respect of whom it is shown —

- (i) is dead or unfit because of his or her bodily or mental condition to attend as a witness;
- (ii) that despite reasonable efforts to locate him or her, he or she cannot be found whether within or outside Singapore;
- (iii) that he or she is outside Singapore and it is not practicable to secure his or her attendance; or
- (iv) that, being competent but not compellable to give evidence on behalf of the party desiring to give the statement in evidence, he or she refuses to do so;

or by agreement.

- (k) when the parties to the proceedings agree that for the purpose of those proceedings the statement may be given in evidence.

Illustrations

- (a) The question is whether *A* was murdered by *B*.

A dies of injuries received in a transaction in the course of which she was raped.

The question is whether *A* was raped by *B*; or

The question is whether *A* was killed by *B* under such circumstances that a suit would lie against *B* by *A*'s widow.

Statements made by *A* as to the cause of his or her death, referring respectively to the murder, the rape and the actionable wrong under consideration, are relevant facts.

- (b) The question is as to the date of *A*'s birth.

An entry in the diary of a deceased surgeon regularly kept in the course of business, stating that on a given day he or she attended *A*'s mother and delivered her of a son, is a relevant fact.

- (c) The question is whether *A* was in Singapore on a given day.

A statement in the diary of a deceased solicitor regularly kept in the course of business that on a given day the solicitor attended *A* at a place mentioned in Singapore for the purpose of conferring with *A* upon specified business is a relevant fact.

- (d) The question is whether a ship sailed from Singapore harbour on a given day.

A letter written by a deceased member of a merchant's firm by which the ship was chartered to their correspondents in London, to whom the cargo was consigned, stating that the ship sailed on a given day from Singapore harbour is a relevant fact.

(e) The question is whether rent was paid to *A* for certain land.

A letter from *A*'s deceased agent to *B*, saying that the agent had received the rent on *A*'s account and held it at *A*'s orders, is a relevant fact.

(f) The question is whether *A* and *B* were legally married.

The statement of a deceased clergyman that he married them under such circumstances that the celebration would be a crime is relevant.

(g) The question is whether *A*, a person who cannot be found, wrote a letter on a certain day.

The fact that a letter written by *A* is dated on that day is relevant.

(h) The question is, what was the cause of the wreck of a ship?

A protest made by the captain, whose attendance cannot be procured, is a relevant fact.

(i) The question is, what was the price of shares on a certain day in a particular market?

A statement of the price made by a deceased broker in the ordinary course of his or her business is a relevant fact.

(j) The question is whether *A*, who is dead, was the father of *B*.

A statement by *A* that *B* was his son is a relevant fact.

(k) The question is, what was the date of the birth of *A*?

A letter from *A*'s deceased father to a friend, announcing the birth of *A* on a given day, is a relevant fact.

(l) The question is whether and when *A* and *B* were married.

An entry in a memorandum-book by *C*, the deceased father of *B*, of his daughter's marriage with *A* on a given date, is a relevant fact.

(m) *A* sues *B* for a libel expressed in a printed caricature exposed in a shop-window. The question is as to the similarity of the caricature and its libellous character.

The remarks of a crowd of spectators on these points may be proved.

[4/2012]

(2) For the purposes of paragraph (a), (c), (d), (e), (f), (g), (h), (i) or (j) of subsection (1), where a person makes an oral statement to or in the hearing of another person who, at the request of the maker of the statement, puts it (or the substance of it) into writing at the time or reasonably soon afterwards, thereby producing a corresponding statement in a document, the statement in the document is to be treated for the purposes of those paragraphs as the statement of the maker of the oral statement.

[4/2012]

(3) A statement which is otherwise relevant under subsection (1) is not relevant if the court is of the view that it would not be in the interests of justice to treat it as relevant.

[4/2012]

(4) Except in the case of subsection (1)(k), evidence may not be given under subsection (1) on behalf of a party to the proceedings unless that party complies —

- (a) in the case of criminal proceedings, with such notice requirements and other conditions as may be prescribed by the Minister under section 428 of the Criminal Procedure Code 2010; and
- (b) in all other proceedings, with such notice requirements and other conditions as may be prescribed in the Rules of Court or the Family Justice Rules.

[4/2012; 27/2014]

(5) Where a statement is admitted in evidence under subsection (1), the court shall assign such weight as it deems fit to the statement.

[4/2012]

(6) Despite paragraph (k) of subsection (1), an agreement under that paragraph does not enable a statement to be given in evidence in criminal proceedings on the prosecution's behalf unless at the time the agreement is made, the accused or any of the co-accused is represented by an advocate.

[4/2012]

(7) Despite paragraph (k) of subsection (1), an agreement under that paragraph is of no effect for the purposes of any proceedings before the General Division of the High Court or any proceedings arising out of proceedings before the General Division of the High Court if made during proceedings before an examining Magistrate conducting a committal hearing under Division 2 of Part 10 of the Criminal Procedure Code 2010 as in force immediately before 17 September 2018.

[4/2012; 19/2018; 40/2019]

Protest, greeting, etc., treated as stating fact that utterance implies

32A. For the purposes of section 32(1), a protest, greeting or other verbal utterance

may be treated as stating any fact that the utterance implies.

[4/2012]

Statement of opinion

32B.—(1) Subject to this section, section 32 applies to statements of opinion as they apply to statements of fact.

[4/2012]

(2) A statement of opinion is only admissible under section 32(1) if that statement would be admissible in those proceedings if made through direct oral evidence.

[4/2012]

(3) Where a person is called as a witness in any proceedings, a statement of opinion by him or her on a relevant matter on which he or she is not qualified to give expert evidence, if made as a way of conveying relevant facts personally perceived by him or her, is admissible as evidence of what he or she perceived.

[4/2012]

Admissibility of evidence as to credibility of maker, etc., of statement admitted under certain provisions

32C.—(1) Where in any proceedings a statement made by a person who is not called as a witness in those proceedings is given in evidence by virtue of section 32(1) —

- (a) any evidence which, if that person had been so called, would be admissible for the purpose of undermining or supporting that person's credibility as a witness, is admissible for that purpose in those proceedings; and
- (b) as regards any matter which, if that person had been so called, could have been put to him or her in cross-examination for the purpose of undermining his or her credibility as a witness, being a matter of which, if he or she had denied it, evidence could not have been adduced by the cross-examining party, evidence of that matter may with the permission of the court be given for that purpose.

[4/2012]

[Act 25 of 2021 wef 01/04/2022]

(2) Where in any proceedings a statement made by a person who is not called as a witness in those proceedings is given in evidence by virtue of section 32(1), evidence tending to prove that, whether before or after he or she made that statement, he or she made another statement (orally, written or otherwise) inconsistent with the firstmentioned statement is admissible for the purpose of showing that the person has contradicted himself or herself.

[4/2012]

(3) For the purposes of section 32(1)(b), subsections (1) and (2) apply in relation to

both the maker of the statement and the person who originally supplied the information from which the statement was made.

[4/2012]

(4) Section 32(2) applies for the purposes of this section as it applies for the purposes of section 32(1).

[4/2012]

Relevancy of certain evidence for proving in subsequent proceeding the truth of facts therein stated

33. Evidence given by a witness in a judicial proceeding, or before any person authorised by law to take it, is relevant for the purpose of proving in a subsequent judicial proceeding, or in a later stage of the same judicial proceeding, the truth of the facts which it states, when the witness is dead or cannot be found or is incapable of giving evidence, or is kept out of the way by the adverse party, or if the witness's presence cannot be obtained without an amount of delay or expense which under the circumstances of the case the court considers unreasonable subject to the following provisions:

- (a) the proceeding was between the same parties or their representatives in interest;
- (b) the adverse party in the first proceeding had the right and opportunity to cross-examine;
- (c) the questions in issue were substantially the same in the first as in the second proceeding.

Explanation.—A criminal trial or inquiry is deemed to be a proceeding between the prosecutor and the accused within the meaning of this section.

Statements made under special circumstances

Entries in books of accounts when relevant

34. Entries in books of accounts regularly kept in the course of business are relevant whenever they refer to a matter into which the court has to inquire, but such statements are not alone sufficient evidence to charge any person with liability.

Illustration

A sues *B* for \$1,000 and shows entries in his or her account books showing *B* to be indebted to *A* to this amount. The entries are relevant, but are not sufficient without other evidence to prove the debt.

35. *[Repealed by Act 4 of 2012]*

36. *[Repealed by Act 4 of 2012]*

Rules for filing and receiving evidence and documents in court by using information technology

36A.—(1) The Rules Committee constituted under the Supreme Court of Judicature Act 1969, and the Family Justice Rules Committee constituted under the Family Justice Act 2014, may make rules to provide for the filing, receiving and recording of evidence and documents in court by the use of information technology in such form, manner or method as may be prescribed.

[27/2014]

(2) Without limiting subsection (1), such rules may —

- (a) modify such provisions of this Act as may be necessary for the purpose of facilitating the use of electronic filing of documents in court;
- (b) provide for the burden of proof and rebuttable presumptions in relation to the identity and authority of the person sending or filing the evidence or documents by the use of information technology; and
- (c) provide for the authentication of evidence and documents filed or received by the use of information technology.

Relevancy of entry in public record made in performance of duty

37. An entry in any public or other official book, register or record, stating a fact in issue or relevant fact and made by a public officer in the discharge of his or her official duty or by any other person in performance of a duty specially enjoined by the law of the country in which such book, register or record is kept, is itself a relevant fact.

Relevancy of statements in maps, charts and plans

38. Statements of facts in issue or relevant facts made in published maps or charts generally offered for public sale, or in maps or plans made under the authority of Government as to matters usually represented or stated in such maps, charts or plans, are themselves relevant facts.

Relevancy of statement as to fact of public nature contained in certain Ordinances,

Acts or notifications

39. When the court has to form an opinion as to the existence of any fact of a public nature, any statement of it made in a recital contained in —

- (a) any Act or Ordinance;
- (b) any legislation enacted by the Parliament of Malaysia or by the legislature of any part of the Commonwealth;
- (c) any legislation enacted by the legislature of any State of Malaysia; or
- (d) any document purporting to be —
 - (i) the *Government Gazette*;
 - (ii) the *London Gazette*; or
 - (iii) the *Gazette* printed under the authority of the Government of Malaysia or of any State thereof or of the government of any other part of the Commonwealth including, where such part is under both a central government and a local government, any such local government,

is a relevant fact.

[Act 5 of 2025 wef 09/03/2025]

Relevancy of statements as to any law contained in law books

40. When the court has to form an opinion as to a law of any country, any statement of the law contained in a book purporting to be printed or published under the authority of the government of the country, and to contain any such law, and any report of a ruling of the courts of the country contained in a book purporting to be a report of the rulings, is relevant.

How much of a statement is to be proved

What evidence to be given when statement forms part of conversation, document, book or series of letters or papers

41. When any statement of which evidence is given forms part of a longer statement or of a conversation, or part of an isolated document or is contained in a document which forms part of a book or of a connected series of letters or papers, evidence is to be given of so much and no more of the statement, conversation, document, book or series of letters or papers as the court considers necessary in that particular case to the full

understanding of the nature and effect of the statement and of the circumstances under which it was made.

Judgments of courts of justice when relevant

Previous judgments relevant to bar a second suit or trial

42. The existence of any judgment, order or decree which by law prevents any court from taking cognizance of a suit or holding a trial is a relevant fact when the question is whether the court ought to take cognizance of the suit or to hold the trial.

Relevancy of certain judgments in probate, etc., jurisdiction

43.—(1) A final judgment, order or decree of a competent court, in the exercise of probate, matrimonial, admiralty or bankruptcy jurisdiction, which confers upon or takes away from any person any legal character, or which declares any person to be entitled to any such character, or to be entitled to any specific thing, not as against any specified person but absolutely, is relevant when the existence of any such legal character or the title of any such person to any such thing is relevant.

(2) Such judgment, order or decree is conclusive proof —

- (a) that any legal character which it confers accrued at the time when such judgment, order or decree came into operation;
- (b) that any legal character to which it declares any such person to be entitled accrued to that person at the time when such judgment, order or decree declares it to have accrued to that person;
- (c) that any legal character which it takes away from any such person ceased at the time from which such judgment, order or decree declared that it had ceased or should cease; and
- (d) that anything to which it declares any person to be so entitled was the property of that person at the time from which such judgment, order or decree declares that it had been or should be that person's property.

Relevancy and effect of judgments, orders or decrees other than those mentioned in section 43

44. Judgments, orders or decrees other than those mentioned in section 43 are relevant if they relate to matters of a public nature relevant to the inquiry; but such judgments, orders or decrees are not conclusive proof of that which they state.

Illustration

A sues *B* for trespass on *A*'s land. *B* alleges the existence of a public right of way over the land which *A* denies.

The existence of a decree in favour of the defendant in a suit by *A* against *C* for a trespass on the same land in which *C* alleged the existence of the same right of way is relevant, but it is not conclusive proof that the right of way exists.

Judgments, etc., other than those mentioned in sections 42, 43 and 44 when relevant

45. Judgments, orders or decrees other than those mentioned in sections 42, 43 and 44 are irrelevant unless the existence of such judgment, order or decree is a fact in issue or is relevant under some other provision of this Act.

Illustrations

(a) *A* and *B* separately sue *C* for a libel which reflects upon each of them. *C* in each case says that the matter alleged to be libellous is true, and the circumstances are such that it is probably true in each case or in neither.

A obtains a decree against *C* for damages on the ground that *C* failed to make out *C*'s justification. The fact is irrelevant as between *B* and *C*.

(b) [*Deleted by Act 15 of 2019*]

(c) *A* has obtained a decree for the possession of land against *B*. *C*, *B*'s son, murders *A* in consequence.

The existence of the judgment is relevant as showing motive for a crime.

(d) *A* is charged with theft and with having been previously convicted of theft.

The previous conviction is relevant as a fact in issue.

(e) *A* is tried for the murder of *B*. The fact that *B* prosecuted *A* for libel and that *A* was convicted and sentenced is relevant under section 8 as showing the motive for the fact in issue.

[15/2019]

Relevance of convictions and acquittals

45A.—(1) Without affecting sections 42, 43, 44 and 45, the fact that a person has been convicted or acquitted of an offence by or before any court in Singapore is

admissible in evidence for the purpose of proving, where relevant to any issue in the proceedings, that the person committed (or, as the case may be, did not commit) that offence, whether or not the person is a party to the proceedings; and where the person was convicted, whether the person was so convicted upon a plea of guilty or otherwise.

(2) A conviction referred to in subsection (1) is relevant and admissible unless —

- (a) it is subject to review or appeal that has not yet been determined;
- (b) it has been quashed or set aside; or
- (c) a pardon has been given in respect of it.

(3) A person proved to have been convicted of an offence under this section is, unless the contrary is proved, taken to have committed the acts and to have possessed the state of mind (if any) which at law constitute that offence.

(4) Any conviction or acquittal admissible under this section may be proved by a certificate of conviction or acquittal, signed by the Registrar of the Supreme Court, the registrar of the State Courts or the registrar of the Family Justice Courts (as the case may be), giving the substance and effect of the charge and of the conviction or acquittal.

[5/2014; 27/2014]

(5) Where relevant, any document containing details of the information, complaint, charge, agreed statement of facts or record of proceedings on which the person in question is convicted is admissible in evidence.

(6) The method of proving a conviction or acquittal under this section is in addition to any other authorised manner of proving a conviction or acquittal.

(7) In any criminal proceedings, this section is subject to any written law or any other rule of law to the effect that a conviction is not admissible to prove a tendency or disposition on the part of the accused to commit the kind of offence with which the accused has been charged.

(8) In this section —

“registrar of the Family Justice Courts” includes the deputy registrar or an assistant registrar of the Family Justice Courts;

“registrar of the State Courts” includes a deputy registrar of the State Courts;

“Registrar of the Supreme Court” includes the Deputy Registrar or an Assistant Registrar of the Supreme Court.

[27/2014]

Fraud or collusion in obtaining judgment or incompetency of court may be proved

46. Any party to a suit or other proceeding may show that any judgment, order or decree which is relevant under section 42, 43 or 44, and which has been proved by the adverse party, was delivered by a court not competent to deliver it or was obtained by fraud or collusion.

Opinions of third persons when relevant

Opinions of experts

47.—(1) Subject to subsection (4), when the court is likely to derive assistance from an opinion upon a point of scientific, technical or other specialised knowledge, the opinions of experts upon that point are relevant facts.

[4/2012]

(2) An expert is a person with such scientific, technical or other specialised knowledge based on training, study or experience.

[4/2012]

(3) The opinion of an expert is not irrelevant merely because the opinion or part of the opinion relates to a matter of common knowledge.

[4/2012]

(4) An opinion which is otherwise relevant under subsection (1) is not relevant if the court is of the view that it would not be in the interests of justice to treat it as relevant.

[4/2012]

Facts bearing upon opinions of experts

48. Facts not otherwise relevant are relevant if they support or are inconsistent with the opinions of experts when such opinions are relevant.

Illustrations

(a) The question is whether *A* was poisoned by a certain poison.

The fact that other persons who were poisoned by that poison exhibited certain symptoms, which experts affirm or deny to be the symptoms of that poison, is relevant.

(b) The question is whether an obstruction to a harbour is caused by a certain seawall.

The fact that other harbours similarly situated in other respects but where there were no such seawalls began to be obstructed at about the same time is relevant.

Opinion as to handwriting when relevant

49. When the court has to form an opinion as to the person by whom any document was written or signed, the opinion of any person acquainted with the handwriting of the person by whom it is supposed to be written or signed, that it was or was not written or signed by that person, is a relevant fact.

Explanation.—A person is said to be acquainted with the handwriting of another person when he or she has seen that person write, or when he or she has received documents purporting to be written by that person in answer to documents written by himself or herself or under his or her authority and addressed to that person, or when, in the ordinary course of business, documents purporting to be written by that person have been habitually submitted to him or her.

Illustrations

The question is whether a given letter is in the handwriting of *A*, a merchant in London.

B is a merchant in Singapore, who has written letters addressed to *A* and received letters purporting to be written by *A*. *C* is *B*'s clerk, whose duty it was to examine and file *B*'s correspondence. *D* is *B*'s broker, to whom *B* habitually submitted the letters purporting to be written by *A*, for the purpose of advising him or her thereon.

The opinions of *B*, *C* and *D* on the question whether the letter is in the handwriting of *A* are relevant, though neither *B*, *C* nor *D* ever saw *A* write.

Opinion as to existence of right or custom when relevant

50. When the court has to form an opinion as to the existence of any general custom or right, the opinions as to the existence of such custom or right of persons who would be likely to know of its existence, if it existed, are relevant.

Explanation.—“General custom or right” includes customs or rights common to any considerable class of persons.

Illustration

The right of the inhabitants of a particular kampong to use the water of a particular well is a general right within the meaning of this section.

Opinion as to usages, tenets, etc., when relevant

51. When the court has to form an opinion as to —

- (a) the usages and tenets of any body of men or family;
- (b) the constitution and government of any religious or charitable foundation;

or

- (c) the meaning of words or terms used in particular districts or by particular classes of people,

the opinions of persons having special means of knowledge thereon are relevant facts.

Opinion on relationship when relevant

52.—(1) When the court has to form an opinion as to the relationship of one person to another, the opinion expressed by conduct as to the existence of such relationship of any person who as a member of the family or otherwise has special means of knowledge on the subject is a relevant fact.

(2) Such opinion is not sufficient to prove a marriage in prosecutions under section 6A of the Women's Charter 1961.

Illustrations

- (a) The question is whether *A* and *B* were married.

The fact that they were usually received and treated by their friends as husband and wife is relevant.

- (b) The question is whether *A* was a legitimate son of *B*.

The fact that *A* was always treated as such by members of the family is relevant.

[\[51/2007; 15/2019\]](#)

Grounds of opinion when relevant

53. Whenever the opinion of any living person is relevant, the grounds on which such opinion is based are also relevant.

Illustration

An expert may give an account of experiments performed by him or her for the purpose of forming his or her opinion.

Character when relevant

In civil cases character to prove conduct imputed irrelevant

54. In civil cases the fact that the character of any person concerned is such as to

render probable or improbable any conduct imputed to him or her is irrelevant, except insofar as such character appears from facts otherwise relevant.

In criminal cases previous good character relevant

55. In criminal proceedings, the fact that the person accused is of a good character is relevant.

Admissibility of evidence and questions about accused's disposition or reputation

56.—(1) In any criminal proceedings, the accused may —

- (a) personally or by his or her advocate ask questions of any witness with a view to establishing directly or by implication that he or she is generally or in a particular respect a person of good disposition or reputation;
- (b) himself or herself give evidence tending to establish directly or by implication that he or she is generally or in a particular respect such a person; or
- (c) call a witness to give any such evidence.

(2) Where any of the things mentioned in subsection (1) has been done, the prosecution may call, and any person jointly charged with the accused may call or himself or herself give, evidence to establish that the accused is a person of bad disposition or reputation, and the prosecution or any person so charged may in cross-examining any witness (including, where he or she gives evidence, the accused) ask him or her questions with a view to establishing that fact.

(3) Where by virtue of this section a party is entitled to call evidence to establish that the accused is a person of bad disposition or reputation, that party may call evidence of the accused's previous convictions, if any, whether or not that party calls any other evidence for that purpose.

(4) Where by virtue of this section a party is entitled in cross-examining the accused to ask him or her questions with a view to establishing that he or she is such a person, section 122(4) does not apply in relation to his or her cross-examination by that party.

Character as affecting damages

57. In civil cases, the fact that the character of any person is such as to affect the amount of damages which the person ought to receive is relevant.

Explanation.—In sections 54, 55, 56 and 57, the word “character” includes both reputation and disposition; but, except as provided in section 56, evidence may be given only of general reputation and

general disposition, and not of particular acts by which reputation or disposition are shown.

PART 2

PROOF

Facts which need not be proved

Fact judicially noticeable need not be proved

58. No fact of which the court will take judicial notice need be proved.

Facts of which court must take judicial notice

59.—(1) The court is to take judicial notice of the following facts:

- (a) all laws or rules having the force of law now or heretofore in force or hereafter to be in force in Singapore, including all Acts passed or hereafter to be passed by Parliament;
- (b) all Acts passed or hereafter to be passed by the legislature of any country within the Commonwealth;
- (c) articles of war for the armed forces of Singapore or any visiting forces lawfully present in Singapore;
- (d) the course of proceedings of Parliament and of the legislature of any country within the Commonwealth;
- (e) the election of the President and the appointment of any person to exercise the functions of the President;
- (f) the public seal, the seal of the President, the seals of all the courts in Singapore, the seals of notaries public, all seals that any person is authorised to use by any law in force for the time being in Singapore, and all seals of which English courts take judicial notice;
[Act 29 of 2022 wef 01/08/2023]
- (g) the appointment, accession to office, names, titles, functions and signatures of the persons filling for the time being any public office in Singapore, if the fact of their appointment to such office is notified in the *Gazette*;
- (h) the existence, title and national flag of every State or Sovereign recognised by the Government;

- (i) the ordinary course of nature, natural and artificial divisions of time, the geographical divisions of the world, the meaning of English words, and public festivals, fasts and holidays notified in the *Gazette*;
- (j) the countries in the Commonwealth;
- (k) the commencement, continuance and termination of hostilities between Singapore or any other part of the Commonwealth and any other country or body of persons;
- (l) the names of the members and officers of the court and of their deputies and subordinate officers and assistants, and also of all officers acting in execution of its process, and of all advocates and solicitors and other persons authorised by law to appear or act before it;
- (m) the rule of the road on land or at sea;
- (n) all other matters which it is directed by any written law to notice.

[16/2016]

(2) In all these cases, and also on all matters of public history, literature, science or art, the court may resort for its aid to appropriate books or documents of reference.

(3) If the court is called upon by any person to take judicial notice of any fact, the court may refuse to do so unless such person produces any such book or document as it considers necessary to enable it to do so.

Facts admitted need not be proved

60.—(1) No fact need be proved in any proceeding which the parties to the proceeding or their agents agree to admit at the hearing or which before the hearing they agree to admit by any writing under their hands, or which by any rule of pleading in force at the time they are deemed to have admitted by their pleadings.

(2) The court may, in its discretion, require the facts admitted to be proved otherwise than by such admissions.

Oral evidence

Proof of facts by oral evidence

61. All facts, except the contents of documents, may be proved by oral evidence.

Oral evidence must be direct

62.—(1) Oral evidence must in all cases be direct —

- (a) if it refers to a fact which could be seen, it must be the evidence of a witness who says he or she saw that fact;
- (b) if it refers to a fact which could be heard, it must be the evidence of a witness who says he or she heard that fact;
- (c) if it refers to a fact which could be perceived by any other sense or in any other manner, it must be the evidence of a witness who says he or she perceived that fact by that sense or in that manner;
- (d) if it refers to an opinion or to the grounds on which that opinion is held, it must be the evidence of the person who holds that opinion on those grounds.

(2) The opinions of experts expressed in any treatise commonly offered for sale and the grounds on which such opinions are held may be proved by the production of such treatise if the author is dead or cannot be found or has become incapable of giving evidence or cannot be called as a witness without an amount of delay or expense which the court regards as unreasonable.

(3) If oral evidence refers to the existence or condition of any material thing other than a document, the court may, if it thinks fit, require the production of such material thing for its inspection.

Evidence through live video or live television links, etc.

62A.—(1) Despite any other provision of this Act, a person may, with permission of the court, give evidence through a live video or live television link in any proceedings, other than proceedings in a criminal matter or proceedings for contempt of court, if —

- (a) the witness is below 18 years of age;
- (b) it is expressly agreed between the parties to the proceedings that evidence may be so given;
- (c) the witness is outside Singapore; or
- (d) the court is satisfied that it is expedient in the interests of justice to do so.

[30/2019]
[Act 25 of 2021 wef 01/04/2022]

(2) In considering whether to grant permission for a witness outside Singapore to give evidence by live video or live television link under this section, the court is to have regard to all the circumstances of the case including the following:

- (a) the reasons for the witness being unable to give evidence in Singapore;

(b) the administrative and technical facilities and arrangements made at the place where the witness is to give his or her evidence;

[Act 25 of 2021 wef 01/04/2022]

(c) whether any party to the proceedings would be unfairly prejudiced;

[Act 25 of 2021 wef 01/04/2022]

(d) any other matter prescribed by rules made under subsection (9).

[Act 25 of 2021 wef 01/04/2022]

(3) The court may, in granting permission under subsection (1), make an order on all or any of the following matters:

(a) the persons who may be present at the place where the witness is giving evidence;

(b) that a person be excluded from the place while the witness is giving evidence;

(c) the persons in the courtroom who must be able to be heard, or seen and heard, by the witness and by the persons with the witness;

(d) the persons in the courtroom who must not be able to be heard, or seen and heard, by the witness and by the persons with the witness;

(e) the persons in the courtroom who must be able to see and hear the witness and the persons with the witness;

(f) the stages in the proceedings during which a specified part of the order is to have effect;

(g) the method of operation of the live video or live television link system including compliance with such minimum technical standards as may be determined by the Chief Justice;

(h) any other order the court considers necessary in the interests of justice.

[Act 25 of 2021 wef 01/04/2022]

(4) The court may revoke, suspend or vary an order made under this section if —

(a) the live video or live television link system stops working and it would cause unreasonable delay to wait until a working system becomes available;

(b) it is necessary for the court to do so to comply with its duty to ensure that the proceedings are conducted fairly to the parties thereto;

(c) it is necessary for the court to do so, so that the witness can identify a

person or a thing or so that the witness can participate in or view a demonstration or an experiment;

- (d) it is necessary for the court to do so because part of the proceedings is being heard outside a courtroom;

[Act 25 of 2021 wef 01/04/2022]

- (e) there has been a material change in the circumstances after the court has made an order; or

[Act 25 of 2021 wef 01/04/2022]

- (f) any conditions prescribed by rules made under subsection (9) for the purposes of this subsection are met.

[Act 25 of 2021 wef 01/04/2022]

(5) The court is not to make an order under this section, or include a particular provision in such an order, if to do so would be inconsistent with the court's duty to ensure that the proceedings are conducted fairly to the parties to the proceedings.

(5A) In making any order under this section, or any particular provision in such an order, a court is to have regard to matters prescribed by rules made under subsection (9).

[Act 25 of 2021 wef 01/04/2022]

(6) An order made under this section does not cease to have effect merely because the person in respect of whom it was made attains 18 years of age before the proceedings in which it was made are finally determined.

[30/2019]

(6A) Despite any provision of this Act and this section, the parties in any civil proceedings may, with the express agreement of all the parties to the proceedings pursuant to section 11(3)(b) of the Family Justice Act 2014, section 8(3)(b) of the State Courts Act 1970* or section 8A(3)(b) of the Supreme Court of Judicature Act 1969*, apply for permission of the court for a witness to give evidence through a live audio link only, and the application must describe the arrangements that the parties have agreed to put in place to ensure the integrity and quality of the evidence to be given by the witness.

*[*Updated to be consistent with the 2020 Revised Edition]*

[Act 25 of 2021 wef 01/04/2022]

(7) Evidence given by a witness, whether in Singapore or elsewhere, through a live video or live television link by virtue of this section, or through a live audio link (without an accompanying live video link or live television link) by virtue of subsection (6A), is deemed for the purposes of sections 193, 194, 195, 196 and 205 of the Penal Code 1871 as having been given in the proceedings in which it is given.

[15/2019]

[Act 25 of 2021 wef 01/04/2022]

(8) Where a witness gives evidence in accordance with this section, the witness is, for the purposes of this Act, deemed to be giving evidence in the presence of the court.

(9) The Rules Committee constituted under the Supreme Court of Judicature Act 1969, and the Family Justice Rules Committee constituted under the Family Justice Act 2014, may make such rules as appear to it to be necessary or expedient for the purpose of giving effect to this section and for prescribing anything which may be prescribed under this section.

[27/2014]

(10) In this section, “live video or live television link” means a live video or live television link that is created using an electronic communication technology approved by the Chief Justice.

[Act 25 of 2021 wef 01/04/2021]

Documentary evidence

Proof of contents of documents

63. The contents of documents may be proved by primary or by secondary evidence.

Primary evidence

64. Primary evidence means the document itself produced for the inspection of the court.

Explanation 1.—Where a document is executed in several parts, each part is primary evidence of the document.

Where a document is executed in counterpart, each counterpart being executed by one or some of the parties only, each counterpart is primary evidence as against the parties executing it.

Explanation 2.—Where a number of documents are all made by one uniform process, as in the case of printing, lithography or photography, each is primary evidence of the contents of the rest; but where they are all copies of a common original they are not primary evidence of the contents of the original.

Illustration

A person is shown to have been in possession of a number of placards, all printed at one time from one original. Any one of the placards is primary evidence of the contents of any other, but no one of them is primary evidence of the contents of the original.

Explanation 3.—Despite *Explanation 2*, if a copy of a document in the form of an electronic record is shown to reflect that document accurately, then the copy is primary evidence.

Illustrations

(a) An electronic record, which has been manifestly or consistently acted on, relied upon, or used as the information recorded or stored on the computer system (the document), is primary evidence of that document.

(b) If the electronic record has not been manifestly or consistently acted on, relied upon, or used as a record of the information in the document, the electronic record may be a copy of the document and treated as secondary evidence of that document.

[4/2012]

Secondary evidence

65. Secondary evidence means and includes —

- (a) certified copies given under the provisions hereinafter contained;
- (b) except for copies referred to in *Explanation 3* to section 64, copies made from the original by electronic, electrochemical, chemical, magnetic, mechanical, optical, telematic or other technical processes, which in themselves ensure the accuracy of the copy, and copies compared with such copies;
- (c) copies made from or compared with the original;
- (d) counterparts of documents as against the parties who did not execute them;
- (e) oral accounts of the contents of a document given by some person who has himself or herself seen it.

Illustrations

(a) A photograph of an original is secondary evidence of its contents, though the 2 have not been compared, if it is proved that the thing photographed was the original.

(b) A copy compared with a copy of a letter made by a copying machine is secondary evidence of the contents of the letter if it is shown that the copy made by the copying machine was made from the original.

(c) [Deleted by Act 4 of 2012]

(d) A copy transcribed from a copy but afterwards compared with the original is secondary evidence, but the copy not so compared is not secondary evidence of the original, although the copy from which it was transcribed was compared with the original.

(e) Neither an oral account of a copy compared with the original nor an oral account of a photograph or machine-copy of the original is secondary evidence of the original.

[4/2012]

Proof of documents by primary evidence

66. Documents must be proved by primary evidence except in the cases mentioned in section 67.

Cases in which secondary evidence relating to documents may be given

67.—(1) Secondary evidence may be given of the existence, condition or contents of a document admissible in evidence in the following cases:

- (a) when the original is shown or appears to be in the possession or power of —
 - (i) the person against whom the document is sought to be proved;
 - (ii) any person out of reach of or not subject to the process of the court; or
 - (iii) any person legally bound to produce it,
and when, after the notice mentioned in section 68, such person does not produce it;
- (b) when the existence, condition or contents of the original have been proved to be admitted in writing by the person against whom it is proved or by his or her representative in interest;
- (c) when the original has been destroyed or lost, or when the party offering evidence of its contents cannot for any other reason not arising from his or her own default or neglect produce it in reasonable time;
- (d) when the original is of such a nature as not to be easily movable;
- (e) when the original is a public document within the meaning of section 76;
- (f) when the original is a document of which a certified copy is permitted by this Act or by any other law in force for the time being in Singapore to be given in evidence;
- (g) when the originals consist of numerous accounts or other documents which

cannot conveniently be examined in court, and the fact to be proved is the general result of the whole collection.

(2) In cases (a), (c) and (d) in subsection (1), any secondary evidence of the contents of the document is admissible.

(3) In case (b) in subsection (1), the written admission is admissible.

(4) In case (e) or (f) in subsection (1), a certified copy of the document but no other kind of secondary evidence is admissible.

(5) In case (g) in subsection (1), evidence may be given as to the general result of the documents by any person who has examined them and who is skilled in the examination of such documents.

Proof of documents in certain cases

67A. Where in any proceedings a statement in a document is admissible in evidence by virtue of section 32(1), it may be proved by the production of that document or (whether or not that document is still in existence) by the production of a copy of that document, or of the material part of it, authenticated in a manner approved by the court.

[4/2012]

Rules as to notice to produce

68.—(1) Secondary evidence of the contents of the documents referred to in section 67(1)(a) shall not be given unless the party proposing to give such secondary evidence has previously given to the party in whose possession or power the document is, or to that party's solicitor, such notice to produce it as is prescribed by law; and if no notice is prescribed by law, then such notice as the court considers reasonable under the circumstances of the case.

(2) The notice mentioned in subsection (1) is not required in order to render secondary evidence admissible in any of the following cases or in any other case in which the court thinks fit to dispense with it:

- (a) when the document to be proved is itself a notice;
- (b) when from the nature of the case the adverse party must know that the adverse party will be required to produce it;
- (c) when it appears or is proved that the adverse party has obtained possession of the original by fraud or force;
- (d) when the adverse party or the adverse party's agent has the original in court;

- (e) when the adverse party or the adverse party's agent has admitted the loss of the document;
- (f) when the person in possession of the document is out of reach of or not subject to the process of the court.

Manner of giving voluminous or complex evidence

68A.—(1) Evidence may be given in the form of charts, summaries or other explanatory material, in electronic or other medium, if it appears to the court that —

- (a) the materials would be likely to aid the court's comprehension of other evidence which is relevant and admissible according to the provisions of this Act or any other written law; and
- (b) the evidence that is to be given by any party is so voluminous or complex that the court considers it convenient to assess the evidence by reference to such materials.

[\[4/2012\]](#)

(2) Any fact or opinion asserted in any material referred to in subsection (1) must be proved by relevant and admissible evidence, and if such fact or opinion is one that is admissible only on the proof of some other fact or opinion, such last mentioned fact or opinion must be proved before evidence is given of the fact or opinion first mentioned, unless the party undertakes to give proof of such fact or opinion and the court is satisfied with such undertaking.

(3) In any proceedings where any material referred to in subsection (1) is adduced in evidence, the court may —

- (a) direct the party to provide such material in electronic or other medium;
- (b) require the provision of such material or copy thereof, including the identity and address of the person who prepared the material, to the other parties; and
- (c) specify a period within which such material or copy thereof must be provided to all parties to the proceedings.

[\[4/2012\]](#)

Proof of signature and handwriting of person alleged to have signed or written document produced

69.—(1) If a document is alleged to be signed or to have been written wholly or in part by any person, the signature or the handwriting of so much of the document as is

alleged to be in that person's handwriting must be proved to be in that person's handwriting.

(2) This section does not apply to any electronic record or electronic signature to which the Electronic Transactions Act 2010 applies.

Proof of execution of document required by law to be attested

70. If a document is required by law to be attested, it shall not be used as evidence until one attesting witness at least has been called for the purpose of proving its execution, if there is an attesting witness alive and subject to the process of the court and capable of giving evidence.

Proof where no attesting witness found

71. If no such attesting witness can be found, or if the document purports to have been executed in the United Kingdom of Great Britain and Northern Ireland, it must be proved that the attestation of one attesting witness at least is in his or her handwriting, and that the signature of the person executing the document is in the handwriting of that person.

Admission of execution by party to attested document

72. The admission of a party to an attested document of its execution by himself or herself is sufficient proof of its execution as against him or her, though it is a document required by law to be attested.

Proof when attesting witness denies the execution

73. If the attesting witness denies or does not recollect the execution of the document, its execution may be proved by other evidence.

Proof of document not required by law to be attested

74. An attested document not required by law to be attested may be proved as if it was unattested.

Comparison of signature, writing or seal with others admitted or proved

75.—(1) In order to ascertain whether a signature, writing or seal is that of the person by whom it purports to have been written or made, any signature, writing or seal, admitted or proved to the satisfaction of the court to have been written or made by that person, may be compared by a witness or by the court with the one which is to be proved, although that signature, writing or seal has not been produced or proved for any

other purpose.

(2) The court may direct any person present in court to write any words or figures for the purpose of enabling the court to compare the words or figures so written with any words or figures alleged to have been written by such person.

(3) This section applies also, with any necessary modifications, to finger impressions.

Public documents

Public documents

76. The following documents are public documents:

- (a) documents forming the acts or records of the acts of —
 - (i) the sovereign authority;
 - (ii) official bodies and tribunals; and
 - (iii) public officers, legislative, judicial and executive, whether of Singapore or of any part of the Commonwealth or of a foreign country;
- (b) public records kept in Singapore of private documents.

Private documents

77. All other documents are private.

Certified copies of public documents

78.—(1) Every public officer having the custody of a public document which any person has a right to inspect must give that person on demand a copy of it on payment of the legal fees therefor, together with a certificate, written at the foot of such copy, that it is a true copy of such document or part thereof, as the case may be.

(2) A certificate under subsection (1) must be dated and subscribed by such officer with the officer's name and official title, and must be sealed whenever such officer is authorised by law to make use of a seal, and such copies so certified are called certified copies.

Explanation.—Any officer who by the ordinary course of official duty is authorised to deliver such copies is deemed to have the custody of such documents within the meaning of this section.

Proof of documents by production of certified copies

79. Such certified copies may be produced in proof of the contents of the public documents or parts of the public documents of which they purport to be copies.

Proof of other official documents

80.—(1) The following public documents may be proved as follows:

- (a) the Acts, orders or notifications of the Government in any of its departments — by the records of the departments certified by the heads of those departments or by a Minister or by any document purporting to be printed or published by the authority of the Government;
[Act 5 of 2025 wef 09/03/2025]
- (b) the proceedings of Parliament — by the minutes of Parliament or by published Acts or abstracts or by copies purporting to be printed or published by the authority of the Government;
[Act 5 of 2025 wef 09/03/2025]
- (c) the Acts, orders or notifications of the Government of Malaysia or the proceedings of the Parliament of Malaysia — by copies or extracts contained in the Government *Gazette* of Malaysia or by the recognition thereof in any Act or Ordinance of Malaysia or any State thereof;
- (d) proclamations, orders or regulations issued by Her Majesty or by the Privy Council or by any department of Her Majesty's Government — by copies or extracts contained in the London *Gazette* or the *Gazette*;
- (e) the Acts of the Executive or the proceedings of the legislature of a foreign country — by journals published by their authority or commonly received in that country as such, or by a copy certified under the seal of the country or sovereign, or by a recognition thereof in some public Act of Singapore;
- (f) the proceedings of a municipal body, town board or other local authority in Malaysia — by a copy of such proceedings certified by the legal keeper thereof, or by a printed book purporting to be published by the authority of such body;
- (g) public documents of any other class in a foreign country — by the original or by a copy certified by the legal keeper thereof, with a certificate under the seal of a notary public or of a consular officer of Singapore that the copy is duly certified by the officer having the legal custody of the original and upon proof of the character of the document according to the law of the foreign country.

(2) Copies of Acts, Ordinances and Statutes passed by the legislature of any country in the Commonwealth and of orders, regulations and other instruments issued or made under the authority of any such Act, Ordinance or Statute, if purporting to be printed by the Government Printer, are to be received in evidence by all courts in Singapore without any proof being given that the copies were so printed.

[16/2016]

(3) In this section, “Government Printer” means, as respects any country in the Commonwealth, the printer purporting to be the printer authorised to print the Acts, Ordinances or Statutes of the legislature of that country, or otherwise to be the Government Printer of that country.

[16/2016]

Prints from films in possession of the Government and statutory body

80A.—(1) A print, whether enlarged or not, purporting to be made from a film of any document in the possession of the Government or any specified statutory body may be produced in proof of the contents of the document or such part of the document to which the print purports to be a copy upon proof that —

- (a) while the document was in the custody or control of the Government or specified statutory body the film was taken in order to keep a permanent record thereof; and
- (b) the document photographed —
 - (i) was subsequently destroyed, whether deliberately or otherwise;
 - (ii) was so damaged as to be wholly or partly indecipherable;
 - (iii) was lost; or
 - (iv) had passed out of the custody or control of the Government or specified statutory body.

[20/2018]

(2) Proof —

- (a) that a print is made from a film of a document in the possession of the Government or a specified statutory body; and
- (b) of compliance with the conditions in subsection (1),

may be given in respect of any document or groups of documents by a public officer or by an employee of the specified statutory body having custody or control of the film, orally or by a certificate purporting to be signed by such public officer or employee.

(3) A certificate under subsection (2) is admissible in evidence in any proceedings before any court on its production without further proof.

(4) On the production of a certificate under subsection (3), the court before which it is produced is to presume, until the contrary is proved —

- (a) that the facts stated in the certificate relating to the print and the compliance with the conditions in subsection (1) are true; and
- (b) that the certificate purporting to be signed by a public officer or an employee of a specified statutory body has been signed by him or her.

(5) In this section —

“film” includes a photographic plate, microfilm and photostatic negative;

“specified statutory body” means a statutory body specified in the Second Schedule.

[20/2018]

Proof of signature, seal, etc., on foreign public document under Apostille Convention

80B. To avoid doubt, sections 76 to 80A do not affect the operation of Part 2 of the Apostille Act 2020.

[38/2020]

Presumptions as to documents

Presumption as to genuineness of certified copies

81.—(1) The court is to presume to be genuine every document purporting to be a certificate, certified copy or other document which is by law declared to be admissible as evidence of any particular fact, and which purports to be duly certified by any public officer in Singapore or any officer in Malaysia who is duly authorised thereto, if such document is substantially in the form and purports to be executed in the manner directed by law in that behalf.

(2) The court is to also presume that any officer by whom any such document purports to be signed or certified held, when the officer signed it, the official character which the officer claims in such document.

Presumption as to documents produced as record of evidence

82. Whenever any document is produced before any court purporting to be a record or

memorandum of the evidence or of any part of the evidence given by a witness in a judicial proceeding or before any officer authorised by law to take such evidence, or to be a statement or confession by any prisoner or accused person, taken in accordance with law and purporting to be signed by any Judge or Magistrate or by any such authorised officer, the court is to presume —

- (a) that the document is genuine;
- (b) that any statements as to the circumstances under which it was taken, purporting to be made by the person signing it, are true; and
- (c) that such evidence, statement or confession was duly taken.

Presumption as to *Gazettes*, newspapers and other documents

83. The court is to presume the genuineness of every document purporting to be the Government *Gazette* of Singapore or the Government *Gazette* of Malaysia or of any part of the Commonwealth, or to be the *Gazette* issued by the local government of any part of Malaysia or of the Commonwealth, or to be a newspaper or journal and of every document purporting to be a document directed by any law to be kept by any person, if such document is kept substantially in the form required by law and is produced from proper custody.

Presumption as to document admissible in England without proof of seal or signature

84. When any document is produced before any court purporting to be a document which by the law in force for the time being in England or Northern Ireland would be admissible in proof of any particular in any court of justice in England or Northern Ireland, without proof of the seal or stamp or signature authenticating it, or of the judicial or official character claimed by the person by whom it purports to be signed —

- (a) the court is to presume that such seal, stamp or signature is genuine, and that the person signing it held at the time when the person signed it the judicial or official character which the person claims; and
- (b) the document is admissible for the same purpose for which it would be admissible in England or Northern Ireland.

Presumption as to maps or plans made by authority of Government

85.—(1) The court is to presume that maps or plans purporting to be made by the authority of the Government were so made and are accurate.

- (2) Maps or plans made for the purposes of any cause or other proceeding, civil or

criminal, must be proved to be accurate.

Presumption as to publication containing law or report of court decision

86. The court is to presume the genuineness of every publication purporting —

- (a) to be printed or published under the authority of the government of any country and to contain any law of that country; or
- (b) to contain any official or authoritative report of a decision of a court of any country.

[\[16/2016\]](#)

Presumption as to powers of attorney

87. The court is to presume that every document purporting to be a power of attorney, and to have been executed before and authenticated by a notary public or any court, Judge, Magistrate or consular officer of Singapore, was so executed and authenticated.

Presumption as to certified copies of foreign judicial records

88. The court may presume that any document purporting to be a certified copy of any judicial record of any country not forming part of the Commonwealth is genuine and accurate if the document purports to be certified in any manner which is certified by any representative of the President or of Her Britannic Majesty in or for such country to be the manner commonly in use in that country for the certification of copies of judicial records.

Presumption as to books, maps and charts

89. The court may presume that any book to which it may refer for information on matters of public or general interest, and that any published map or chart the statements of which are relevant facts and which is produced for its inspection, was written and published by the person and at the time and place by whom or at which it purports to have been written or published.

Presumption as to telegraphic messages

90. The court may presume that a message forwarded from a telegraph office to the person to whom such message purports to be addressed corresponds with a message delivered for transmission at the office from which the message purports to be sent; but the court is not to make any presumption as to the person by whom such message was delivered for transmission.

Presumption as to due execution, etc., of documents not produced

91. The court is to presume that every document called for and not produced, after notice to produce given under section 68, was attested, stamped and executed in the manner required by law.

Presumption as to documents 30 years old

92. Where any document purporting or proved to be 30 years old is produced from any custody which the court in the particular case considers proper, the court may presume that the signature and every other part of such document which purports to be in the handwriting of any particular person is in that person's handwriting, and in the case of a document executed or attested, that it was duly executed and attested by the persons by whom it purports to be executed and attested.

Explanation.—Documents are said to be in proper custody if they are in the place in which and under the care of the person with whom they would naturally be; but no custody is improper if it is proved to have had a legitimate origin, or if the circumstances of the particular case are such as to render such an origin probable.

This explanation applies also to section 83.

Illustrations

(a) *A* has been in possession of landed property for a long time. *A* produces from *A*'s custody deeds relating to the land, showing *A*'s titles to it. The custody is proper.

(b) *A* produces deeds relating to landed property of which *A* is the mortgagee. The mortgagor is in possession. The custody is proper.

(c) *A*, a connection of *B*, produces deeds relating to lands in *B*'s possession, which were deposited with *A* by *B* for safe custody. The custody is proper.

Exclusion of oral by documentary evidence

Evidence of terms of contracts, grants and other dispositions of property reduced to form of document

93. When the terms of a contract or of a grant or of any other disposition of property have been reduced by or by consent of the parties to the form of a document, and in all cases in which any matter is required by law to be reduced to the form of a document, no evidence may be given in proof of the terms of such contract, grant or other disposition of property or of such matter except the document itself, or secondary evidence of its

contents in cases in which secondary evidence is admissible under the provisions of this Act.

Exception 1.—When a public officer is required by law to be appointed in writing, and when it is shown that any particular person has acted as such officer, the writing by which he or she is appointed need not be proved.

Exception 2.—Wills admitted to probate in Singapore may be proved by the probate.

Explanation 1.—This section applies equally to cases in which the contracts, grants or dispositions of property referred to are contained in one document, and to cases in which they are contained in more documents than one.

Explanation 2.—Where there are more originals than one, one original only need be proved.

Explanation 3.—The statement in any document whatever of a fact, other than the facts referred to in this section, does not preclude the admission of oral evidence as to the same fact.

Illustrations

(a) If a contract is contained in several letters, all the letters in which it is contained must be proved.

(b) If a contract is contained in a bill of exchange, the bill of exchange must be proved.

(c) If a bill of exchange is drawn in a set of 3, one only need be proved.

(d) *A* contracts in writing with *B* for the delivery of pepper upon certain terms. The contract mentions the fact that *B* had paid *A* the price of other pepper contracted for verbally on another occasion.

Oral evidence is offered that no payment was made for the other pepper. The evidence is admissible.

(e) *A* gives *B* a receipt for money paid by *B*.

Oral evidence is offered of the payment. The evidence is admissible.

Exclusion of evidence of oral agreement

94. When the terms of any such contract, grant or other disposition of property, or any matter required by law to be reduced to the form of a document, have been proved according to section 93, no evidence of any oral agreement or statement is to be admitted as between the parties to any such instrument or their representatives in interest for the purpose of contradicting, varying, adding to, or subtracting from its terms subject to the following provisions:

- (a) any fact may be proved which would invalidate any document or which would entitle any person to any decree or order relating thereto; such as fraud, intimidation, illegality, want of due execution, want of capacity in any contracting party, the fact that it is wrongly dated, want or failure of consideration, or mistake in fact or law;
- (b) the existence of any separate oral agreement, as to any matter on which a document is silent and which is not inconsistent with its terms, may be proved; in considering whether or not this proviso applies, the court is to have regard to the degree of formality of the document;
- (c) the existence of any separate oral agreement constituting a condition precedent to the attaching of any obligation under any such contract, grant or disposition of property, may be proved;
- (d) the existence of any distinct subsequent oral agreement, to rescind or modify any such contract, grant or disposition of property, may be proved except in cases in which such contract, grant or disposition of property is by law required to be in writing, or has been registered according to the law in force for the time being as to the registration of documents;
- (e) any usage or custom by which incidents not expressly mentioned in any contract are usually annexed to contracts of that description may be proved; except that the annexing of such incident would not be repugnant to or inconsistent with the express terms of the contract;
- (f) any fact may be proved which shows in what manner the language of a document is related to existing facts.

Illustrations

(a) A policy of insurance is effected on goods “in ships from Singapore to London”. The goods are shipped in a particular ship, which is lost. The fact that that particular ship was orally excepted from the policy cannot be proved.

(b) *A* agrees absolutely in writing to pay *B* \$1,000 on 1 March 1893. The fact that at the same time an oral agreement was made that the money should not be paid till 31 March cannot be proved.

(c) An estate called “the Kranji Estate” is sold by a deed which contains a map of the property sold. The fact that land not included in the map had always been regarded as part of the estate and was meant to pass by the deed cannot be proved.

(d) *A* enters into a written contract with *B* to work certain mines, the property of *B*,

upon certain terms. *A* was induced to do so by a misrepresentation of *B* as to their value. This fact may be proved.

(*e*) *A* institutes a suit against *B* for the specific performance of a contract, and also prays that the contract may be reformed as to one of its provisions on the ground that that provision was inserted in it by mistake. *A* may prove that such a mistake was made as would by law entitle *A* to have the contract reformed.

(*f*) *A* orders goods of *B* by a letter in which nothing is said as to the time of payment, and accepts the goods on delivery. *B* sues *A* for the price. *A* may show that the goods were supplied on credit for a term still unexpired.

(*g*) *A* sells *B* a horse and verbally warrants the horse to be sound. *A* gives *B* a paper in these words: "Bought of *A* a horse for \$300." *B* may prove the verbal warranty.

(*h*) *A* hires lodgings of *B* and gives *B* a card on which is written: "Rooms \$80 a month." *A* may prove a verbal agreement that these terms were to include partial board.

A hires lodgings of *B* for a year, and a regularly stamped agreement drawn up by an attorney is made between them. It is silent on the subject of board. *A* may not prove that board was included in the terms verbally.

(*i*) *A* applies to *B* for a debt due to *A* by sending a receipt for the money. *B* keeps the receipt and does not send the money. In a suit for the amount *A* may prove this.

(*j*) *A* and *B* make a contract in writing to take effect upon the happening of a certain contingency. The writing is left with *B*, who sues *A* upon it. *A* may show the circumstances under which it was delivered.

[\[S 210/2016\]](#)

Exclusion of evidence to explain or amend ambiguous document

95. When the language used in a document is on its face ambiguous or defective, evidence may not be given of facts which would show its meaning or supply its defects.

Illustrations

(*a*) *A* agrees in writing to sell a horse to *B* for \$500 or \$600. Evidence cannot be given to show which price was to be given.

(*b*) A deed contains blanks. Evidence cannot be given of facts which would show how they were meant to be filled.

Exclusion of evidence against application of document to existing facts

96. When language used in a document is plain in itself and when it applies accurately to existing facts, evidence may not be given to show that it was not meant to apply to such facts.

Illustration

A conveys to *B* by deed “my estate at Kranji containing 100 hectares”. *A* has an estate at Kranji containing 100 hectares. Evidence may not be given of the fact that the estate meant was one situated at a different place and of a different size.

Evidence as to document meaningless in reference to existing facts

97. When language used in a document is plain in itself, but is meaningless in reference to existing facts, evidence may be given to show that it was used in a peculiar sense.

Illustration

A conveys to *B* by deed “my plantation in Penang”.

A had no plantation in Penang, but it appears that *A* had a plantation in Province Wellesley, of which *B* had been in possession since the execution of the deed.

These facts may be proved to show that the deed related to the plantation in Province Wellesley.

Evidence as to application of language which can apply to one only of several persons

98. When the facts are such that the language used might have been meant to apply to any one, and could not have been meant to apply to more than one of several persons or things, evidence may be given of facts which show to which of those persons or things it was intended to apply.

Illustrations

(a) *A* agrees to sell to *B* for \$500 “my white horse”. *A* has 2 white horses. Evidence may be given of facts which show which of them was meant.

(b) *A* agrees to accompany *B* to Halifax. Evidence may be given of facts showing whether Halifax in Yorkshire or Halifax in Nova Scotia was meant.

Evidence as to application of language to one of 2 sets of facts to neither of which the whole correctly applies

99. When the language used applies partly to one set of existing facts and partly to another set of existing facts, but the whole of it does not apply correctly to either, evidence may be given to show to which of the 2 it was meant to apply.

Illustration

A agrees to sell to *B* “my land at *X* in the occupation of *Y*”. *A* has land at *X*, but not in the occupation of *Y*, and *A* has land in the occupation of *Y*, but it is not at *X*. Evidence may be given of facts showing which *A* meant to sell.

Evidence as to meaning of illegible characters, etc.

100. Evidence may be given to show the meaning of illegible or not commonly intelligible characters, of foreign, obsolete, technical, local and provincial expressions, of abbreviations and of words used in a peculiar sense.

Illustration

A, a sculptor, agrees to sell to *B* “all my mods”. *A* has both models and modelling tools. Evidence may be given to show which *A* meant to sell.

Who may give evidence of agreement varying terms of document

101. Persons who are not parties to a document or their representatives in interest may give evidence of any fact tending to show a contemporaneous agreement varying the terms of the document.

Illustration

A and *B* make a contract in writing that *B* is to sell *A* certain tin to be paid for on delivery. At the same time they make an oral agreement that 3 months’ credit is to be given to *A*. This could not be shown as between *A* and *B*, but it might be shown by *C* if it affected *C*’s interests.

Construction of wills not affected by sections 93 to 101

102. Nothing in sections 93 to 101 affects the construction of wills.

PART 3

PRODUCTION AND EFFECT OF EVIDENCE

Burden of proof

Burden of proof

103.—(1) Whoever desires any court to give judgment as to any legal right or liability, dependent on the existence of facts which the person asserts, must prove that those facts exist.

(2) When a person is bound to prove the existence of any fact, it is said that the burden of proof lies on that person.

Illustrations

(a) *A* desires a court to give judgment that *B* shall be punished for a crime which *A* says *B* has committed.

A must prove that *B* has committed the crime.

(b) *A* desires a court to give judgment that *A* is entitled to certain land in the possession of *B* by reason of facts which *A* asserts and which *B* denies to be true.

A must prove the existence of those facts.

On whom burden of proof lies

104. The burden of proof in a suit or proceeding lies on that person who would fail if no evidence at all were given on either side.

Illustrations

(a) *A* sues *B* for land of which *B* is in possession, and which, as *A* asserts, was left to *A* by the will of *C*, *B*'s father.

If no evidence were given on either side, *B* would be entitled to possession.

Therefore the burden of proof is on *A*.

(b) *A* sues *B* for money due on a bond.

The execution of the bond is admitted, but *B* says that it was obtained by fraud, which *A* denies.

If no evidence were given on either side, *A* would succeed as the bond is not disputed and the fraud is not proved.

Therefore the burden of proof is on *B*.

Burden of proof as to particular fact

105. The burden of proof as to any particular fact lies on that person who wishes the court to believe in its existence, unless it is provided by any law that the proof of that fact is to lie on any particular person.

Illustrations

(a) *A* prosecutes *B* for theft and wishes the court to believe that *B* admitted the theft to *C*. *A* must prove the admission.

(b) *B* wishes the court to believe that at the time in question he or she was elsewhere. *B* must prove it.

Burden of proving fact to be proved to make evidence admissible

106. The burden of proving any fact necessary to be proved in order to enable any person to give evidence of any other fact is on the person who wishes to give such evidence.

Illustrations

(a) *A* wishes to prove a dying declaration by *B*. *A* must prove *B*'s death.

(b) *A* wishes to prove by secondary evidence the contents of a lost document.

A must prove that the document has been lost.

Burden of proving that case of accused comes within exceptions

107. When a person is accused of any offence, the burden of proving the existence of circumstances bringing the case within any of the general exceptions in the Penal Code 1871, or within any special exception or proviso contained in any other part of the Penal Code 1871, or in any law defining the offence, is upon the person, and the court is to presume the absence of such circumstances.

Illustrations

(a) *A* accused of murder alleges that by reason of unsoundness of mind *A* did not know the nature of the act.

The burden of proof is on *A*.

(b) *A* accused of murder alleges that by grave and sudden provocation *A* was deprived of the power of self-control.

The burden of proof is on *A*.

(c) Section 325 of the Penal Code 1871 provides that whoever, except in the case provided for by section 335, voluntarily causes grievous hurt shall be subject to certain punishments.

A is charged with voluntarily causing grievous hurt under section 325.

The burden of proving the circumstances, bringing the case under section 335, lies on *A*.

Burden of proving fact especially within knowledge

108. When any fact is especially within the knowledge of any person, the burden of proving that fact is upon that person.

Illustrations

(a) When a person does an act with some intention other than that which the character and circumstances of the act suggest, the burden of proving that intention is upon that person.

(b) *A* is charged with travelling on a railway without a ticket. The burden of proving that *A* had a ticket is on him or her.

Burden of proving death of person known to have been alive within 30 years

109. When the question is whether a person is alive or dead, and it is shown that the person was alive within 30 years, the burden of proving that the person is dead is on the person who affirms it.

Burden of proving that person is alive who has not been heard of for 7 years

110. When the question is whether a person is alive or dead, and it is proved that the person has not been heard of for 7 years by those who would naturally have heard of the person if the person had been alive, the burden of proving that the person is alive is

shifted to the person who affirms it.

Burden of proof as to relationship in the cases of partners, landlord and tenant, principal and agent

111. When the question is whether persons are partners, landlord and tenant, or principal and agent, and it has been shown that they have been acting as such, the burden of proving that they do not stand, or have ceased to stand to each other in those relationships respectively, is on the person who affirms it.

Burden of proof as to ownership

112. When the question is whether any person is owner of anything of which the person is shown to be in possession, the burden of proving that the person is not the owner is on the person who affirms that the firstmentioned person is not the owner.

Proof of good faith in transactions where one party is in relation of active confidence

113. Where there is a question as to the good faith of a transaction between parties, one of whom stands to the other in a position of active confidence, the burden of proving the good faith of the transaction is on the party who is in a position of active confidence.

Illustrations

(a) The good faith of a sale by a client to an attorney is in question in a suit brought by the client. The burden of proving the good faith of the transaction is on the attorney.

(b) The good faith of a sale by a son just come of age to a father is in question in a suit brought by the son. The burden of proving the good faith of the transaction is on the father.

Rebuttable presumption of paternity

114.—(1) Where any person was born —

- (a) during the continuance of a valid marriage between his or her mother and any man; or
- (b) within 280 days after the dissolution of the marriage, the mother remaining unmarried,

it is presumed that the person is the legitimate child of that man, unless the contrary is proved.

[16/2013]

(2) Subsection (1) does not apply to a person whose parenthood is determined under the Status of Children (Assisted Reproduction Technology) Act 2013.

[16/2013]

115. *[Repealed by Act 8 of 1996]*

Court may presume existence of certain fact

116. The court may presume the existence of any fact which it thinks likely to have happened, regard being had to the common course of natural events, human conduct, and public and private business, in their relation to the facts of the particular case.

Illustrations

The court may presume —

- (a) that an individual who is in possession of stolen goods soon after the theft is either the thief or has received the goods knowing them to be stolen, unless the individual can account for his or her possession;
- (b) that an accomplice is unworthy of credit and his or her evidence needs to be treated with caution;
- (c) that a bill of exchange accepted or endorsed was accepted or endorsed for good consideration;
- (d) that a thing or state of things which has been shown to be in existence within a period shorter than that within which such things or states of things usually cease to exist is still in existence;
- (e) that judicial and official acts have been regularly performed;
- (f) that the common course of business has been followed in particular cases;
- (g) that evidence which could be and is not produced would if produced be unfavourable to the person who withholds it;
- (h) that if an individual refuses to answer a question which the individual is not compelled to answer by law, the answer if given would be unfavourable to him or her;
- (i) that when a document creating an obligation is in the hands of the obligor the obligation has been discharged.

But the court is also to have regard to such facts as the following in considering whether such maxims do or do not apply to the particular case before it:

as to illustration (a)—a shop-keeper has in his or her till a marked dollar soon after it was stolen and cannot account for its possession specifically but is continually receiving dollars in the course of his or her business:

as to illustration (b)—*A*, a person of the highest character is tried for causing a man's death by an act of negligence in arranging certain machinery. *B*, a person of equally good character, who also took part in the arrangement, describes precisely what was done and admits and explains the common carelessness of *A* and *B*:

as to illustration (b)—a crime is committed by several persons. *A*, *B* and *C*, 3 of the criminals, are captured on the spot and kept apart from each other. Each gives an account of the crime implicating *D*, and the accounts corroborate each other in such a manner as to render previous concert highly improbable:

as to illustration (c)—*A*, the drawer of a bill of exchange, was a man of business. *B*, the acceptor, was a young and ignorant person completely under *A*'s influence:

as to illustration (d)—it is proved that a river ran in a certain course 5 years ago, but it is known that there have been floods since that time which might change its course:

as to illustration (e)—a judicial act, the regularity of which is in question, was performed under exceptional circumstances:

as to illustration (f)—the question is whether a letter was received. It is shown to have posted, but the usual course of the post was interrupted by disturbances:

as to illustration (g)—an individual refuses to produce a document which would bear on a contract of small importance on which the individual is sued, but which might also injure the feeling and reputation of his or her family:

as to illustration (h)—an individual refuses to answer a question which the individual is not compelled by law to answer, but the answer to it might cause loss to him or her in matters unconnected with the matter in relation to which it is asked:

as to illustration (i)—a bond is in possession of the obligor, but the circumstances of the case are such that he or she may have stolen it.

Presumptions in relation to electronic records

116A.—(1) Unless evidence sufficient to raise doubt about the presumption is adduced, where a device or process is one that, or is of a kind that, if properly used, ordinarily produces or accurately communicates an electronic record, the court is to presume that in producing or communicating that electronic record on the occasion in question, the device or process produced or accurately communicated the electronic

record.

Illustration

A seeks to adduce evidence in the form of an electronic record or document produced by an electronic device or process. *A* proves that the electronic device or process in question is one that, or is of a kind that, if properly used, ordinarily produces that electronic record or document. This is a relevant fact for the court to presume that in producing the electronic record or document on the occasion in question, the electronic device or process produced the electronic record or document which *A* seeks to adduce.

[4/2012]

(2) Unless evidence to the contrary is adduced, the court is to presume that any electronic record generated, recorded or stored is authentic if it is established that the electronic record was generated, recorded or stored in the usual and ordinary course of business by a person who was not a party to the proceedings on the occasion in question and who did not generate, record or store it under the control of the party seeking to introduce the electronic record.

Illustration

A seeks to adduce evidence against *B* in the form of an electronic record. The fact that the electronic record was generated, recorded or stored in the usual and ordinary course of business by *C*, a neutral third party, is a relevant fact for the court to presume that the electronic record is authentic.

[4/2012]

(3) Unless evidence to the contrary is adduced, where an electronic record was generated, recorded or stored by a party who is adverse in interest to the party seeking to adduce the evidence, the court is to presume that the electronic record is authentic in relation to the authentication issues arising from the generation, recording or storage of that electronic record.

Illustration

A seeks to adduce evidence against *B* in the form of an electronic record. The fact that the electronic record was generated, recorded or stored by *B*, who opposes the relevance of the evidence, is a relevant fact for the court to presume that the electronic record is authentic.

[4/2012]

(4) For the purposes of subsection (2), in criminal proceedings a party to the proceedings includes —

(a) the police officer or other officer of a law enforcement agency who was

involved in the investigation of offences allegedly committed by the accused person; or

- (b) an accomplice of the accused person even though he or she is not charged with an offence in the same proceedings.

[4/2012]

(5) The Minister may make regulations providing for a process by which a document may be recorded or stored through the use of an imaging system, including providing for the appointment of one or more persons or organisations to certify these systems and their use, and for any matters incidental thereto, and an “approved process” in subsection (6) means a process that has been approved in accordance with the provisions of such regulations.

[4/2012]

(6) Where an electronic record was recorded or stored from a document produced pursuant to an approved process, the court is to presume, unless evidence to the contrary is adduced, that the electronic record accurately reproduces that document.

[4/2012]

(7) The matters referred to in this section may be established by an affidavit given to the best of the deponent’s knowledge and belief.

[4/2012]

Estoppel

Estoppel

117. When one person (*A*) has by *A*’s declaration, act or omission intentionally caused or permitted another person (*B*) to believe a thing to be true and to act upon such belief, otherwise than but for that belief *B* would have acted, neither *A* or *A*’s representative in interest is to be allowed in any suit or proceeding between himself, herself or itself and *B* or *B*’s representative in interest to deny the truth of that thing.

Illustration

A intentionally and falsely leads *B* to believe that certain land belongs to *A* and thereby induces *B* to buy and pay for it.

The land afterwards becomes the property of *A* and *A* seeks to set aside the sale on the ground that at the time of the sale *A* had no title.

A must not be allowed to prove *A*’s want of title.

Estoppel of tenant and of licensee of person in possession

118.—(1) No tenant of immovable property, or person claiming through such tenant, is during the continuance of the tenancy permitted to deny that the landlord of the tenant had at the beginning of the tenancy a title to the immovable property.

(2) No person who came upon any immovable property by the licence of the person in possession thereof is permitted to deny that the person had a title to the possession at the time when the licence was given.

Estoppel of bailee or licensee

119.—(1) No bailee, agent or licensee is permitted to deny that the bailor, principal or licensor, by whom any goods were entrusted to any of them respectively, was entitled to those goods at the time when they were so entrusted.

(2) Any such bailee, agent or licensee (*A*) may show that *A* was compelled to deliver up any such goods to some person who had a right to them as against *A*'s bailor, principal or licensor, or that *A*'s bailor, principal or licensor wrongfully and without notice to *A*, obtained the goods from a third person, who has claimed them from *A*.

Witnesses

Who may testify

120. All persons are competent to testify unless the court considers that they are prevented from understanding the questions put to them or from giving rational answers to those questions by tender years, extreme old age, disease, whether of body or mind, or any other cause of the same kind.

Explanation.—A lunatic is not incompetent to testify unless he or she is prevented by his or her lunacy from understanding the questions put to him or her and giving rational answers to them.

Dumb witnesses

121.—(1) A witness who is unable to speak may give his or her evidence in any other manner in which he or she can make it intelligible, as, for example, by writing or by signs; but such writing must be written and the signs made in open court.

(2) Evidence so given is deemed to be oral evidence.

Parties to civil suit and their wives or husbands, and husband or wife of person under criminal trial

122.—(1) In all civil proceedings, the parties to the suit, and the husband or wife of any party to the suit, are competent witnesses.

(2) In criminal proceedings against any person, the husband or wife of such person respectively is a competent witness.

(3) In any criminal proceedings, the accused is competent to give evidence on behalf of himself or herself or any person jointly charged with him or her, but is not compellable to do so.

(4) Where in any criminal proceedings the accused gives evidence, then, subject to this section and section 56, the accused must not in cross-examination be asked, and if asked is not required to answer, any question tending to reveal to the court —

- (a) the fact that the accused has committed, or has been charged with or convicted or acquitted of, any offence other than the offence charged; or
- (b) the fact that the accused is generally or in a particular respect a person of bad disposition or reputation.

(5) Subsection (4) does not apply to a question tending to reveal to the court a fact about the accused such as is mentioned in paragraph (a) or (b) thereof if evidence of that fact is (by virtue of section 14 or 15 of this Act or of section 265 or 266 of the Criminal Procedure Code 2010 or of any other written law) admissible for the purpose of proving the commission by him or her of the offence charged.

[15/2010]

(6) Where in any criminal proceedings in which 2 or more persons are jointly charged, any of the accused gives evidence, subsection (4) does not in his or her case apply to any question tending to reveal to the court a fact about him or her such as is mentioned in subsection (4)(a) or (b) if evidence of that fact is admissible for the purpose of showing any other of the accused to be not guilty of the offence with which that other is charged.

(7) Subsection (4) does not apply if —

- (a) the accused has personally or by his or her advocate asked any witness for the prosecution or for a person jointly charged with him or her any question concerning the witness's conduct on any occasion or as to whether the witness has committed, or has been charged with or convicted or acquitted of, any offence; and
- (b) the court is of the opinion that the main purpose of that question was to raise an issue as to the witness's credibility,

but the court is not to permit a question falling within subsection (4) to be put to the

accused by virtue of this subsection unless it is of the opinion that the question is relevant to his or her credibility as a witness.

(8) Subsection (4) does not apply where the accused has himself or herself given evidence against any person jointly charged with him or her in the same proceedings.

Judges and Magistrates

123. No Judge and, except upon the special order of the General Division of the High Court, no Magistrate may be compelled to answer any question as to his or her own conduct in court as such Judge or Magistrate or as to anything which came to his or her knowledge in court as such Judge or Magistrate; but he or she may be examined as to other matters which occurred in his or her presence while he or she was so acting.

Illustrations

(a) *A*, on *A*'s trial before the General Division of the High Court, says that a deposition was improperly taken by *B*, the committing Magistrate. *B* cannot be compelled to answer questions as to this except upon the special order of the General Division of the High Court.

(b) *A* is accused before a District Court of having given false evidence before *B*, a District Judge. *B* cannot be compelled to say what *A* said except upon the special order of the General Division of the High Court.

(c) *A* is accused of attempting to murder a police officer while on *A*'s trial before *B*, a Judge sitting in the General Division of the High Court. *B* may be examined as to what occurred.

[40/2019]

Communications during marriage

124.—(1) No person who is or has been married may be compelled to disclose any communication made to him or her during marriage by any person to whom he or she is or has been married; nor may he or she be permitted to disclose any such communication unless the person who made it or his or her representative in interest consents, except in suits between married persons or proceedings in which one married person is prosecuted for any crime committed against the other.

[15/2019]

(2) Nothing in this section protects from disclosure any such communication made that is relevant in any criminal proceedings in respect of a specified offence.

[15/2019]

(3) In this section —

“domestic worker” has the meaning given by section 73(4) of the Penal Code 1871;

“employer”, in relation to a domestic worker, has the meaning given by section 73(4) of the Penal Code 1871;

“employment agent”, in relation to a domestic worker, has the meaning given by section 73(4) of the Penal Code 1871;

“member of the employer’s household” has the meaning given by section 73(4) of the Penal Code 1871;

“specified offence” means any of the following offences:

- (a) a child abuse offence committed against a person below 16 years of age;
- (b) a sexual offence or an offence under Chapter 16 of the Penal Code 1871 (other than a sexual offence) committed against a person below 16 years of age;
- (c) a sexual offence or an offence under Chapter 16 of the Penal Code 1871 (other than a sexual offence) committed against a domestic worker by an employer of the domestic worker, a member of the employer’s household or an employment agent of the domestic worker;
- (d) a sexual offence or an offence under Chapter 16 of the Penal Code 1871 (other than a sexual offence) committed against a vulnerable person by a person who has the custody, charge or care of the vulnerable person;
- (e) an abetment of, a conspiracy to commit or an attempt to commit any of the offences mentioned in paragraphs (a) to (d);

“vulnerable person” has the meaning given by section 74A(5) of the Penal Code 1871.

[\[15/2019\]](#)

Evidence as to affairs of State

125. No one is permitted to produce any unpublished official records relating to affairs of State, or to give any evidence derived therefrom, except with the permission of the officer at the head of the Department concerned, who may give or withhold such permission as he or she thinks fit, subject, however, to the control of the Minister.

Official communications

126.—(1) No public officer may be compelled to disclose communications made to him or her in official confidence when he or she considers that the public interest would suffer by the disclosure.

[17/2003]

(2) No person who is a member, an officer or an employee of, or who is seconded to, any organisation specified in the Schedule to the Official Secrets Act 1935 may be compelled to disclose communications made to him or her in official confidence when he or she considers that the public interest would suffer by the disclosure.

[17/2003]

Information as to commission of offences

127.—(1) No Magistrate or police officer may be compelled to say from where he or she got any information as to the commission of any offence.

(2) No revenue officer may be compelled to say from where he or she got any information as to the commission of any offence against the public revenue or the excise laws.

Explanation.—“Revenue officer” in this section means any officer employed in or about the business of any branch of the public revenue or in or about the business of any Government farm.

Professional communications

128.—(1) No advocate or solicitor is at any time permitted, unless with his or her client’s express consent, to disclose any communication made to him or her in the course and for the purpose of his or her employment as such advocate or solicitor by or on behalf of his or her client, or to state the contents or condition of any document with which he or she has become acquainted in the course and for the purpose of his or her professional employment, or to disclose any advice given by him or her to his or her client in the course and for the purpose of such employment.

(2) Nothing in this section protects from disclosure —

- (a) any such communication made in furtherance of any illegal purpose;
- (b) any fact observed by any advocate or solicitor in the course of his or her employment as such showing that any crime or fraud has been committed since the commencement of his or her employment.

(3) It is immaterial whether the attention of such advocate or solicitor was or was not directed to such fact by or on behalf of his or her client.

Explanation.—The obligation stated in this section continues after the employment has ceased.

Illustrations

(a) *A*, a client, says to *B*, a solicitor: “I have committed forgery and I wish you to defend me”.

As the defence of a man known to be guilty is not a criminal purpose this communication is protected from disclosure.

(b) *A*, a client, says to *B*, a solicitor: “I wish to obtain possession of property by the use of a forged deed on which I request you to sue”.

This communication being made in furtherance of a criminal purpose is not protected from disclosure.

(c) *A*, being charged with embezzlement, retains *B*, a solicitor, to defend *A*. In the course of the proceedings *B* observes that an entry has been made in *A*’s account book, charging *A* with the sum said to have been embezzled, which entry was not in the book at the commencement of his or her employment.

This being a fact observed by *B* in the course of his or her employment, showing that a fraud has been committed since the commencement of the proceedings, it is not protected from disclosure.

Communications with legal counsel in entity

128A.—(1) A legal counsel in an entity is not at any time permitted, except with the entity’s express consent, to disclose any communication made to him or her in the course and for the purpose of his or her employment as such legal counsel, or to state the contents or condition of any document with which he or she has become acquainted in the course and for the purpose of his or her employment as such legal counsel, or to disclose any legal advice given by him or her to the entity, or to any officer or employee of the entity, in the course and for the purpose of such employment.

[\[4/2012\]](#)

(2) Nothing in subsection (1) protects from disclosure —

- (a) any such communication made in furtherance of any illegal purpose;
- (b) any fact observed by any legal counsel in an entity in the course of his or her employment as such legal counsel showing that any crime or fraud has been committed since the commencement of his or her employment as such legal counsel;
- (c) any such communication made to the legal counsel which was not made

for the purpose of seeking his or her legal advice; or

- (d) any document which the legal counsel was made acquainted with otherwise than in the course of and for the purpose of seeking his or her legal advice.

[4/2012]

(3) For the purposes of subsection (2)(b), it is immaterial whether the attention of the legal counsel was or was not directed to that fact by or on behalf of the entity.

[4/2012]

(4) Where a legal counsel is employed by one of a number of corporations that are related to each other under section 6 of the Companies Act 1967, subsection (1) applies in relation to the legal counsel and every corporation so related as if the legal counsel were also employed by each of the related corporations.

[4/2012]

(5) Where a legal counsel is employed by a public agency and is required as part of his or her duties of employment or appointment to provide legal advice or assistance in connection with the application of the law or any form of resolution of legal dispute to another public agency or agencies, subsection (1) applies in relation to the legal counsel and the second-mentioned public agency or agencies as if the legal counsel were also employed by the second-mentioned public agency or agencies.

[4/2012]

(6) For the purposes of subsection (5), “public agency” includes —

- (a) the Government, including any ministry, department, agency, or Organ of State or instrumentality of the Government;
- (b) any board, commission, committee or similar body, whether corporate or unincorporate, established under a public Act for a public function (called in this subsection a statutory body);
- (c) any other board, commission, committee or similar body appointed by the Government, or by a statutory body, for a public purpose.

[4/2012]

Sections 128 and 128A to apply to interpreters, etc.

129. Sections 128 and 128A apply to interpreters and other persons who work under the supervision of legal professional advisers.

[4/2012]

Privilege not waived by volunteering evidence

130.—(1) If any party to a suit gives evidence therein at his or her own instance or otherwise, that party is not deemed to have consented thereby to such disclosure as is mentioned in section 128 or 128A.

[4/2012]

(2) If any party to a suit or proceeding calls any advocate or solicitor as a witness, that party is deemed to have consented to such disclosure as is mentioned in section 128 only if that party questions the advocate or solicitor on matters which but for the question the advocate or solicitor would not be at liberty to disclose.

[4/2012]

(3) If any party to a suit or proceeding calls any legal counsel in an entity as a witness, that party is deemed to have consented to such disclosure as is mentioned in section 128A only if that party questions the legal counsel on matters which but for the question the legal counsel would not be at liberty to disclose.

[4/2012]

Confidential communications with legal advisers

131.—(1) No one may be compelled to disclose to the court any confidential communication which has taken place between him or her and his or her legal professional adviser unless he or she offers himself or herself as a witness, in which case he or she may be compelled to disclose any such communications as may appear to the court necessary to be known in order to explain any evidence which he or she has given, but no others.

[4/2012]

(2) In subsection (1) and section 129, “legal professional adviser” means —

- (a) an advocate or solicitor; or
- (b) in the case of any communication which has taken place between any officer or employee of an entity and a legal counsel employed, or deemed under section 128A(4) or (5) to be employed, by the entity in the course and for the purpose of seeking his or her legal advice as such legal counsel, that legal counsel.

[4/2012]

Production of title deeds of witness not a party

132.—(1) No witness who is not a party to the suit may be compelled to produce his or her title deeds to any property, or any document by virtue of which he or she holds any property as pledgee or mortgagee, or any document the production of which might tend to criminate him or her, unless he or she has agreed in writing to produce them with the person seeking the production of such deeds or some person through whom he or she claims.

(2) No witness who is a party to the suit is bound to produce any document in his or her possession or power which is not relevant or material to the case of the party requiring its production.

(3) No bank may be compelled to produce the books of such bank in any legal proceeding to which such bank is not a party, except as provided by section 174.

Production of documents which another person having possession could refuse to produce

133. No one may be compelled to produce documents in his or her possession which any other person would be entitled to refuse to produce if they were in his or her possession, except for the purpose of identification, unless such last mentioned person consents to their production, nor may anyone who is entitled to refuse to produce a document be compelled to give oral evidence of its contents.

Witness not excused from answering on ground that answer will criminate

134.—(1) A witness is not excused from answering any question as to any matter relevant to the matter in issue in any suit, or in any civil or criminal proceeding, upon the ground that the answer to such question will criminate, or may tend, directly or indirectly, to criminate, such witness, or that it will expose, or tend, directly or indirectly, to expose, such witness to a penalty or forfeiture of any kind, or that it will establish or tend to establish that the witness owes a debt or is otherwise subject to a civil suit at the instance of the Government or of any other person.

(2) No answer which a witness is compelled by the court to give shall subject him or her to any arrest or prosecution, or be proved against him or her in any criminal proceeding, except a prosecution for giving false evidence by such answer.

(3) Before compelling a witness to answer a question the answer to which will criminate or may tend, directly or indirectly, to criminate such witness, the court is to explain to the witness the purport of subsection (2).

(4) Where the accused gives evidence in any criminal proceedings —

- (a) the accused is not entitled to refuse to answer a question or produce a document or thing on the ground that to do so would tend to prove the commission by him or her of the offence charged; and
- (b) except as regards any question, document or thing which in the opinion of the court is relevant solely or mainly to the accused's credibility as a witness (not being, in the case of a question, one asked by virtue of section 56), the accused is not entitled to refuse to answer a question or

produce a document or thing on the ground that to do so would —

- (i) tend to expose the accused to proceedings for some other offence or for the recovery of a penalty; or
- (ii) tend to expose the accused's wife or husband to proceedings for an offence or for the recovery of a penalty.

(5) Where a person being the wife or husband of the accused gives evidence in any criminal proceedings, that person —

- (a) is not entitled to refuse to answer a question or produce a document or thing on the ground that to do so would tend to prove the commission by the accused of the offence charged; and
- (b) except as regards any question, document or thing which in the opinion of the court is relevant solely or mainly to that person's credibility as a witness, is not entitled to refuse to answer a question or produce a document or thing on the ground that to do so would tend to expose her or him to proceedings as mentioned in subsection (4)(b)(i).

(6) No answer which an accused or his or her spouse is compelled to give under subsection (4)(b) or under subsection (5)(b) shall —

- (a) expose the accused to any proceedings for some other offence or for the recovery of a penalty or be proved against him or her in any such proceedings; or
- (b) expose the spouse to any proceedings for an offence or for the recovery of a penalty or be proved against the spouse in any such proceedings.

(7) Any reference in this section to proceedings for the recovery of a penalty includes a reference to civil proceedings therefor.

Accomplice

135.—(1) An accomplice is a competent witness against an accused person.

(2) Any rule of law or practice whereby at a trial it is obligatory for the court to warn itself about convicting the accused on the uncorroborated testimony of an accomplice is abrogated.

Number of witnesses

136. No particular number of witnesses is in any case required for the proof of any

fact.

Examination of witnesses

Order of production and examination of witnesses

137. The order in which witnesses are produced and examined is to be regulated by the law and practice for the time being relating to civil and criminal procedure respectively, and in the absence of any such law by the discretion of the court.

Court to decide as to admissibility of evidence

138.—(1) When either party proposes to give evidence of any fact, the court may ask the party proposing to give the evidence in what manner the alleged fact, if proved, would be relevant; and the court shall admit the evidence if it thinks that the fact, if proved, would be relevant, and not otherwise.

(2) If the fact proposed to be proved is one of which evidence is admissible only upon proof of some other fact, such last mentioned fact must be proved before evidence is given of the fact first mentioned, unless the party undertakes to give proof of such fact and the court is satisfied with such undertaking.

(3) If the relevancy of one alleged fact depends upon another alleged fact being first proved, the court may, in its discretion, either permit evidence of the first fact to be given before the second fact is proved, or require evidence to be given of the second fact before evidence is given of the first fact.

Illustrations

(a) It is proposed to prove a statement about a relevant fact by a person alleged to be dead, which statement is relevant under section 32.

The fact that the person is dead must be proved by the person proposing to prove the statement before evidence is given of the statement.

(b) It is proposed to prove by a copy the contents of a document said to be lost.

The fact that the original is lost must be proved by the person proposing to produce the copy before the copy is produced.

(c) *A* is accused of receiving stolen property, knowing it to have been stolen.

It is proposed to prove that *A* denied the possession of the property.

The relevancy of the denial depends on the identity of the property. The court may, in its discretion, either require the property to be identified before the denial of the possession is proved or permit the denial of the possession to be proved before the property is identified.

(d) It is proposed to prove a fact (*A*) which is said to have been the cause or effect of a fact in issue. There are several intermediate facts (*B*, *C* and *D*) which must be shown to exist before the fact (*A*) can be regarded as the cause or effect of the fact in issue. The court may either permit *A* to be proved before *B*, *C* or *D* is proved or may require proof of *B*, *C* and *D* before permitting proof of *A*.

Examination-in-chief, cross-examination and re-examination

139.—(1) The examination of a witness by the party who calls him or her is called his or her examination-in-chief.

(2) The examination of a witness by the adverse party is called his or her cross-examination.

(3) Where a witness has been cross-examined and is then examined by the party who called him or her, such examination is called his or her re-examination.

Order of examinations and direction of re-examination

140.—(1) Witnesses are to be first examined-in-chief, then, if the adverse party so desires, cross-examined, then, if the party calling them so desires, re-examined.

(2) The examination and cross-examination must relate to relevant facts, but the cross-examination need not be confined to the facts to which the witness testified on his or her examination-in-chief.

(3) The re-examination is to be directed to the explanation of matters referred to in cross-examination; and if new matter is, by permission of the court, introduced in re-examination, the adverse party may further cross-examine upon that matter.

(4) The court may in all cases permit a witness to be recalled either for further examination-in-chief or for further cross-examination, and if it does so, the parties have the right of further cross-examination and re-examination respectively.

Cross-examination of person called to produce document

141. A person summoned to produce a document does not become a witness by the mere fact that he or she produces it, and cannot be cross-examined unless he or she is called as a witness.

Witnesses to character

142. Witnesses to character may be cross-examined and re-examined.

Leading questions

143. Any question suggesting the answer which the person putting it wishes or expects to receive or suggesting disputed facts as to which the witness is to testify, is called a leading question.

When they must not be asked

144.—(1) Leading questions must not, if objected to by the adverse party, be asked in an examination-in-chief or in a re-examination, except with the permission of the court.

(2) The court shall permit leading questions as to matters which are introductory or undisputed, or which have in its opinion been already sufficiently proved.

When they may be asked

145.—(1) Leading questions may be asked in cross-examination, subject to the following qualifications:

- (a) the question must not put into the mouth of the witness the very words which he or she is to echo back again; and
- (b) the question must not assume that facts have been proved which have not been proved, or that particular answers have been given contrary to the fact.

(2) The court, in its discretion, may prohibit leading questions from being put to a witness who shows a strong interest or bias in favour of the cross-examining party.

Evidence as to matters in writing

146. Any witness may be asked while under examination whether any contract, grant or other disposition of property as to which the witness is giving evidence was not contained in a document, and if the witness says that it was, or if the witness is about to make any statement as to the contents of any document which in the opinion of the court ought to be produced, the adverse party may object to such evidence being given until such document is produced or until facts have been proved which entitle the party who called the witness to give secondary evidence of it.

Explanation.—A witness may give oral evidence of statements made by other persons about the

contents of documents if such statements are in themselves relevant facts.

Illustration

The question is whether *A* assaulted *B*.

C deposes that he or she heard *A* say to *D*: “*B* wrote a letter accusing me of theft and I will be revenged on him”. The statement is relevant as showing *A*’s motive for the assault and evidence may be given of it though no other evidence is given about the letter.

Cross-examination as to previous statements in writing

147.—(1) A witness may be cross-examined as to previous statements made by him or her in writing or reduced into writing, and relevant to matters in question in the suit or proceeding in which he or she is cross-examined, without such writing being shown to him or her or being proved; but if it is intended to contradict him or her by the writing, his or her attention must, before the writing can be proved, be called to those parts of it which are to be used for the purpose of contradicting him or her.

(2) If a witness, upon cross-examination as to a previous oral statement made by him or her relevant to matters in question in the suit or proceeding in which he or she is cross-examined and inconsistent with his or her present testimony, does not distinctly admit that he or she made such statement, proof may be given that he or she did in fact make it; but before such proof can be given, the circumstances of the supposed statement, sufficient to designate the particular occasion, must be mentioned to the witness, and he or she must be asked whether or not he or she made such statement.

(3) Where in any proceedings a previous inconsistent or contradictory statement made by a person called as a witness in those proceedings is proved by virtue of this section, that statement is by virtue of this subsection admissible as evidence of any fact stated therein of which direct oral evidence by the person would be admissible.

(4) Where a person called as a witness in any proceedings is cross-examined on a document used by him or her to refresh his or her memory, that document may be made evidence in those proceedings.

(5) Where a document or any part of a document is received in evidence by virtue of subsection (4), any statement made in that document or part by the person using the document to refresh his or her memory is by virtue of that subsection admissible as evidence of any fact stated therein of which direct oral evidence by him or her would be admissible.

(6) In estimating the weight (if any) to be attached to a statement admissible in

evidence by virtue of this section regard is to be had to all the circumstances from which any inference can reasonably be drawn as to the accuracy or otherwise of the statement and, in particular, to the question whether or not the statement was made contemporaneously with the occurrence or existence of the facts stated, and to the question whether or not the maker of the statement had any incentive to conceal or misrepresent the facts.

(7) Despite any other written law or rule of practice requiring evidence to be corroborated or regulating the manner in which uncorroborated evidence is to be treated, a statement which is admissible in evidence by virtue of this section is not capable of corroborating evidence given by the maker of the statement.

Questions lawful in cross-examination

148. Subject to section 154A, when a witness may be cross-examined, the witness may, in addition to the questions hereinbefore referred to, be asked any questions which tend —

- (a) to test his or her accuracy, veracity or credibility;
- (b) to discover who he or she is and what is his or her position in life; or
- (c) to shake his or her credit by injuring his or her character, although the answer to such questions might tend, directly or indirectly, to criminate him or her, or might expose or tend, directly or indirectly, to expose him or her to a penalty or forfeiture.

[20/2018]

When witness to be compelled to answer

149. If any such question relates to a matter relevant to the suit or proceeding, section 134 applies thereto.

Court to decide when question is to be asked and when witness compelled to answer

150.—(1) If any question relates to a matter not relevant to the suit or proceeding, except insofar as it affects the credit of the witness by injuring his or her character, the court is to decide whether or not the witness is to be compelled to answer it, and may, if it does not think fit to compel him or her to answer the question, warn the witness that he or she is not obliged to answer it.

(2) In exercising its discretion, the court is to have regard to the following considerations:

- (a) such questions are proper if they are of such a nature that the truth of the

imputation conveyed by them would seriously affect the opinion of the court as to the credibility of the witness on the matter to which he or she testifies;

- (b) such questions are improper if the imputation which they convey relates to matters so remote in time or of such character that the truth of the imputation would not affect or would affect in a slight degree the opinion of the court as to the credibility of the witness on the matter to which he or she testifies;
- (c) such questions are improper if there is a great disproportion between the importance of the imputation made against the witness's character and the importance of his or her evidence;
- (d) the court may, if it sees fit, draw from the witness's refusal to answer, the inference that the answer, if given, would be unfavourable.

Question not to be asked without reasonable grounds

151. No such question as is referred to in section 150 ought to be asked unless the person asking it has reasonable grounds for thinking that the imputation which it conveys is well founded.

Illustrations

(a) An advocate is instructed by a solicitor that an important witness is a professional gambler. This is a reasonable ground for asking the witness whether he or she is a professional gambler.

(b) An advocate is informed by a person in court that an important witness is a professional gambler. The informant, on being questioned by the advocate, gives satisfactory reasons for his or her statement. This is a reasonable ground for asking the witness whether he or she is a professional gambler.

(c) A witness of whom nothing whatever is known, is asked at random whether he or she is a professional gambler. There are here no reasonable grounds for the question.

(d) A witness of whom nothing whatever is known being questioned as to his or her mode of life and means of living gives unsatisfactory answers. This may be a reasonable ground for asking him or her if he or she is a professional gambler.

Procedure of court in case of question being asked without reasonable grounds

152. If the court is of the opinion that any such question was asked without reasonable grounds, the court may, if it was asked by any advocate or solicitor, report the

circumstances of the case to the Supreme Court in order that the Judges may, if they think fit, exercise the power to suspend or strike off the roll of advocates and solicitors given to them under the Legal Profession Act 1966.

Indecent and scandalous questions

153. The court may forbid any questions or inquiries which it regards as indecent or scandalous, although such questions or inquiries may have some bearing on the questions before the court, unless they relate to facts in issue or to matters necessary to be known in order to determine whether or not the facts in issue existed.

Questions intended to insult or annoy

154. The court is to forbid any question which appears to it to be intended to insult or annoy, or which though proper in itself, appears to the court needlessly offensive in form.

Restrictions on questions and evidence in criminal proceedings involving sexual offence or child abuse offence

154A.—(1) In criminal proceedings where the accused is charged with committing a sexual offence or child abuse offence, the following are subject to such restrictions as may be provided for in rules made under subsection (2):

- (a) the questions that may be asked of the alleged victim of the offence in cross-examination;
- (b) the evidence that may be adduced about the alleged victim.

[20/2018]

(2) The Minister may make rules to provide for —

- (a) the restrictions mentioned in subsection (1);
- (b) any exceptions to those restrictions; and
- (c) any application concerning any such restriction or exception.

[20/2018]

Exclusion of evidence to contradict answers to questions testing veracity

155. When a witness has been asked and has answered any question which is relevant to the inquiry only insofar as it tends to shake the witness's credit by injuring his or her character, no evidence may be given to contradict him or her; but if the witness answers falsely he or she may afterwards be charged with giving false evidence.

Exception 1.—If a witness is asked whether he or she has been previously convicted of any crime and denies it, evidence may be given of his or her previous conviction.

Exception 2.—If a witness is asked any question tending to impeach his or her impartiality and answers it by denying the facts suggested, he or she may be contradicted.

Illustrations

(a) A claim against an underwriter is resisted on the ground of fraud.

The claimant is asked whether in a former transaction he or she had not made a fraudulent claim. The claimant denies it.

Evidence is offered to show that the claimant did make such a claim.

The evidence is inadmissible.

(b) A witness is asked whether he or she was not dismissed from a situation for dishonesty. The witness denies it.

Evidence is offered to show that the witness was dismissed for dishonesty.

The evidence is not admissible.

(c) *A* affirms that on a certain day *A* saw *B* at Malacca.

A is asked whether *A* was not on that day at Penang. *A* denies it.

Evidence is offered to show that *A* was on that day at Penang.

The evidence is admissible, not as contradicting *A* on a fact which affects *A*'s credit, but as contradicting the alleged fact that *B* was seen on the day in question in Malacca.

(d) *A* is tried for a rape on *B*. *B* is asked in cross-examination whether she has not had illicit intercourse with *C* and *D*. She denies it.

Evidence is offered to show that she has had such intercourse with *C* and *D*. The evidence is not admissible.

In each of the cases in illustrations (c) and (d), the witness might, if the denial was false, be charged with giving false evidence.

(e) *A* is asked whether *A* has not said that *A* would be revenged on *B*, against whom *A* gives evidence. *A* denies it.

A may be contradicted on the ground that the question tends to impeach *A*'s impartiality.

Questions by party to his or her own witness

156. The court may, in its discretion, permit the person who calls a witness to put any questions to him or her which might be put in cross-examination by the adverse party.

Impeaching credit of witness

157. The credit of a witness may be impeached in the following ways by the adverse party or, with the consent of the court, by the party who calls him or her:

- (a) by the evidence of persons who testify that they from their knowledge of the witness believe him or her to be unworthy of credit;
- (b) by proof that the witness has been bribed, or has accepted the offer of a bribe, or has received any other corrupt inducement to give his or her evidence;
- (c) by proof of former statements inconsistent with any part of his or her evidence which is liable to be contradicted.

Explanation.—A witness declaring another witness to be unworthy of credit may not, upon his or her examination-in-chief, give reasons for his or her belief, but he or she may be asked his or her reasons in cross-examination, and the answer which he or she gives cannot be contradicted, though, if they are false, he or she may afterwards be charged with giving false evidence.

Illustrations

(a) *A* sues *B* for the price of goods sold and delivered to *B*.

C says that *C* delivered the goods to *B*.

Evidence is offered to show that on a previous occasion *C* said that *C* had not delivered the goods to *B*.

The evidence is admissible.

(b) *A* is indicted for the murder of *B*.

C says that *B*, when dying, declared that *A* had given *B* the wound of which *B* died.

Evidence is offered to show that on a previous occasion *C* said that the wound was

not given by *A* or in his or her presence.

The evidence is admissible.

[4/2012]

Questions tending to corroborate evidence of relevant fact admissible

158.—(1) When a witness whom it is intended to corroborate gives evidence of any relevant fact, the witness may be questioned as to any other circumstances which he or she observed at or near to the time or place at which such relevant fact occurred, if the court is of the opinion that such circumstances, if proved, would corroborate the testimony of the witness as to the relevant fact to which he or she testifies.

(2) Any rule of law or practice whereby in criminal proceedings the evidence of one witness is incapable of corroborating the evidence of another witness is abrogated.

Former statements of witness may be proved to corroborate later testimony as to same fact

159. In order to corroborate the testimony of a witness, any former statement made by such witness, whether written or verbal, on oath, or in ordinary conversation, relating to the same fact at or about the time when the fact took place, or before any authority legally competent to investigate the fact, may be proved.

What matters may be proved in connection with proved statement relevant under section 32 or 33

160. Whenever any statement relevant under section 32 or 33 is proved, all matters may be proved either in order to contradict or to corroborate it, or in order to impeach or confirm the credit of the person by whom it was made, which might have been proved if that person had been called as a witness and had denied upon cross-examination the truth of the matter suggested.

Evidence not capable of corroboration

160A. For the purpose of any rule of law or practice that requires evidence to be corroborated or that regulates the manner in which uncorroborated evidence is to be treated —

- (a) a statement that is admissible in evidence by virtue of section 32(1) is not capable of corroborating evidence given by the maker of the statement; and
- (b) a statement that is admissible in evidence by virtue of section 32(1)(b) is

not capable of corroborating evidence given by the person who originally supplied the information from which the statement was made.

[4/2012]

Refreshing memory

161.—(1) A witness may while under examination refresh his or her memory by referring to any writing made by himself or herself at the time of the transaction concerning which he or she is questioned, or so soon afterwards that the court considers it likely that the transaction was at that time fresh in his or her memory.

(2) The witness may also refer to any such writing made by any other person and read by the witness within the time mentioned in subsection (1), if, when the witness read it, the witness knew it to be correct.

(3) Whenever the witness may refresh his or her memory by reference to any document, the witness may, with the permission of the court, refer to a copy of such document if the court is satisfied that there is sufficient reason for the non-production of the original.

(4) An expert may refresh his or her memory by reference to professional treatises.

Testimony to facts stated in document mentioned in section 161

162. A witness may also testify to facts mentioned in any such document as is mentioned in section 161 although the witness has no specific recollection of the facts themselves, if the witness is sure that the facts were correctly recorded in the document.

Illustration

A book-keeper may testify to facts recorded by him or her in books regularly kept in the course of business if he or she knows that the books were correctly kept, although he or she has forgotten the particular transactions entered.

Right of adverse party as to writing used to refresh memory

163. Any writing referred to under section 161 or 162 must be produced and shown to the adverse party if he or she requires it; such party may cross-examine the witness thereupon.

Production and translation of documents

164.—(1) A witness summoned to produce a document must, if it is in the witness's possession or power, bring it to court despite any objection which there may be to its

production or to its admissibility.

(2) The validity of any such objection is to be decided on by the court.

(3) The court, if it sees fit, may inspect the document unless it refers to affairs of State, or take other evidence to enable it to determine on its admissibility.

(4) If for such a purpose it is necessary to cause any document to be translated, the court may, if it thinks fit, direct the translator to keep the contents secret unless the document is to be given in evidence; and if the translator disobeys such direction, the translator shall be held to have committed an offence under section 166 of the Penal Code 1871.

Giving as evidence document called for and produced on notice

165. When a party (*A*) calls for a document which *A* has given the other party notice to produce, and such document is produced and inspected by *A*, *A* is bound to give it as evidence if the party producing it requires *A* to do so and if it is relevant.

Using as evidence document production of which was refused on notice

166. When a party refuses to produce a document which that party has had notice to produce, that party cannot afterwards use the document as evidence without the consent of the other party or the order of the court.

Illustration

A sues *B* on an agreement, and gives *B* notice to produce it. At the trial *A* calls for the document, and *B* refuses to produce it. *A* gives secondary evidence of its contents. *B* seeks to produce the document itself to contradict the secondary evidence given by *A*, or in order to show that the agreement is not stamped. *B* cannot do so.

Judge's power to put questions or order production

167.—(1) The Judge may, in order to discover or to obtain proper proof of relevant facts, ask any question he or she pleases, in any form at any time, of any witness or of the parties, about any fact relevant or irrelevant; and may order the production of any document or thing; and neither the parties nor their agents are entitled to make any objection to any such question or order, nor, without the permission of the court, to cross-examine any witness upon any answer given in reply to any such question.

[Act 25 of 2021 wef 01/04/2022]

(2) The judgment must be based upon facts declared by this Act to be relevant and duly proved.

(3) This section does not authorise any Judge to compel any witness to answer any question or to produce any document which such witness would be entitled to refuse to answer or produce under sections 123 to 133 if the question were asked or the document were called for by the adverse party.

(4) The Judge must not —

(a) ask any question which it would be improper for any other person to ask under section 150 or 151; or

(b) dispense with the primary evidence of any document,

except in the cases excepted in this Act.

Power of assessors to put questions

168. In cases tried with assessors, the assessors may put any questions to the witnesses through or by permission of the Judge, which the Judge himself or herself might put and which he or she considers proper.

[Act 25 of 2021 wef 01/04/2022]

Improper admission and rejection of evidence

No new trial for improper admission or rejection of evidence

169. The improper admission or rejection of evidence is not ground of itself for a new trial or reversal of any decision in any case if it appears to the court before which such objection is raised that, independently of the evidence objected to and admitted, there was sufficient evidence to justify the decision, or that, if the rejected evidence had been received, it ought not to have varied the decision.

PART 4

BANKERS' BOOKS

Interpretation of this Part

170. In this Part —

“bank” and “banker” mean any company carrying on the business of bankers in Singapore under a licence granted under any law relating to banking;

“bankers’ books” includes ledgers, day books, cash books, account books and all other books used in the ordinary business of the bank;

“court” means the General Division of the High Court;

“legal proceeding” means any civil or criminal proceeding or inquiry in which evidence is or may be given, and includes an arbitration.

[40/2019]

Mode of proof of entries in bankers’ books

171. Subject to this Part, a copy of any entry in a banker’s book is in all legal proceedings to be received as prima facie evidence of such entry and of the matters, transactions and accounts therein recorded.

Proof that book is a banker’s book

172.—(1) A copy of an entry in a banker’s book is not to be received in evidence under this Part unless it is first proved that —

- (a) the book was, at the time of the making of the entry, one of the ordinary books of the bank;
- (b) the entry was made in the usual and ordinary course of business; and
- (c) the book is in the custody or control of the bank.

(2) Such proof may be given by an officer of the bank and may be given orally or by an affidavit sworn before any commissioner for oaths or person authorised to take affidavits.

Verification of copy

173.—(1) A copy of an entry in a banker’s book is not to be received in evidence under this Part unless it is further proved that the copy has been examined with the original entry and is correct.

(2) Such proof is to be given by some person who has examined the copy with the original entry, and may be given either orally or by an affidavit sworn before any commissioner for oaths or person authorised to take affidavits.

Production by, or appearance of, officer of bank

174. An officer of a bank is not, in any legal proceedings to which the bank is not a party, compellable to produce any banker’s book the contents of which can be proved under this Part, or to appear as a witness to prove the matters, transactions and accounts therein recorded, unless by order of a judge made for special cause.

Court or Judge may order inspection

175.—(1) On the application of any party to a legal proceeding, the court or a Judge may order that such party be at liberty to inspect and take copies of any entries in a banker's book for any of the purposes of such proceedings.

(2) An order under this section may be made either on or without summoning the bank or any other party, and must be served on the bank 3 clear days before the same is to be obeyed unless the court or Judge otherwise directs.

Costs

176.—(1) The costs of any application to the court or a Judge under this Part, and the costs of anything done or to be done under an order of the court or a Judge made under this Part, shall be in the discretion of the court or Judge, who may order the same or any part thereof to be paid to any party by the bank where the same have been occasioned by any fault or delay on the part of the bank.

(2) Any such order against a bank may be enforced as if the bank were a party to the proceeding.

PART 5

MISCELLANEOUS

Amendment of Schedules

177. The Minister may, by order in the *Gazette*, amend the First and Second Schedules.

[\[20/2018\]](#)

FIRST SCHEDULE

Sections 3(1) and 177

CHILD ABUSE OFFENCES AND SEXUAL OFFENCES

PART 1

CHILD ABUSE OFFENCES

1. Any offence under section 6(1), 7, 8, 14(2), 16 or 17 of the Children and Young Persons Act 1993.
2. Any offence under section 377BG, 377BH, 377BI, 377BJ, 377BK or 377BL of the Penal

Code 1871.

PART 2

SEXUAL OFFENCES

1. Any offence under section 354, 354A, 355, 372, 373, 373A, 375, 376, 376A, 376AA, 376B, 376C, 376D, 376E, 376EA, 376EB, 376EC, 376ED, 376EE, 376F, 376G, 376H, 377(3), 377B(3), 377BA, 377BB, 377BC, 377BD, 377BE or 377BF of the Penal Code 1871.

[Act 39 of 2022 wef 03/01/2023]

2. Any offence under section 140, 141, 142, 143, 144, 145, 146, 146A, 147 or 148 of the Women's Charter 1961.

[20/2018; 15/2019]

SECOND SCHEDULE

Sections 80A and 177

	<i>Statutory Body</i>	<i>Act under which established</i>
1.	Building and Construction Authority	Building and Construction Authority Act 1999.
2.	Central Provident Fund Board	Central Provident Fund Act 1953.
3.	Civil Aviation Authority of Singapore	Civil Aviation Authority of Singapore Act 2009.
4.	Civil Service College	Civil Service College Act 2001.
5.	Defence Science and Technology Agency	Defence Science and Technology Agency Act 2000.
6.	Enterprise Singapore Board	Enterprise Singapore Board Act 2018.
7.	Economic Development Board	Economic Development Board Act 1961.
8.	Health Sciences Authority	Health Sciences Authority Act 2001.
9.	Home Team Science and Technology Agency	Home Team Science and Technology Agency Act 2019.
10.	Housing and Development Board	Housing and Development Act 1959.
11.	Info-communications Media Development Authority	Info-communications Media Development Authority Act 2016.
12.	Inland Revenue Authority of Singapore	Inland Revenue Authority of Singapore Act 1992.

13.	Intellectual Property Office of Singapore	Intellectual Property Office of Singapore Act 2001.
14.	Jurong Town Corporation	Jurong Town Corporation Act 1968.
15.	Land Transport Authority of Singapore	Land Transport Authority of Singapore Act 1995.
16.	Maritime and Port Authority of Singapore	Maritime and Port Authority of Singapore Act 1996.
17.	Monetary Authority of Singapore	Monetary Authority of Singapore Act 1970.
18.	National Parks Board	National Parks Board Act 1996.
19.	Public Utilities Board	Public Utilities Act 2001.
20.	Singapore Food Agency	Singapore Food Agency Act 2019.
21.	Singapore Land Authority	Singapore Land Authority Act 2001.
22.	Singapore Tourism Board	Singapore Tourism Board Act 1963.
23.	Urban Redevelopment Authority	Urban Redevelopment Authority Act 1989.

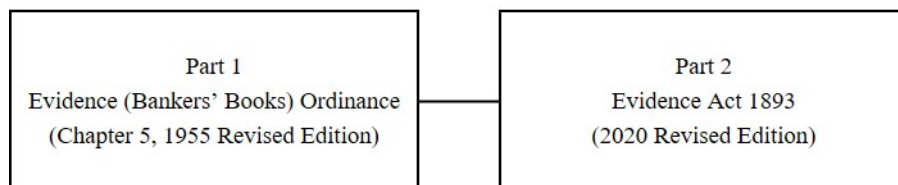
[4/99; 41/99; 9/2000; 3/2001; 17/2001; 3/2005; 17/2009; 20/2018; S 613/2001; S 210/2011; S 174/2019; S 738/2019; S 831/2021]

LEGISLATIVE HISTORY

EVIDENCE ACT 1893

This Legislative History is a service provided by the Law Revision Commission on a best-efforts basis. It is not part of the Act.

Pictorial Overview of Predecessor Acts



Legislative History Details

PART 1 EVIDENCE (BANKERS' BOOKS) ORDINANCE (CHAPTER 5, 1955 REVISED EDITION)

1. Ordinance XII of 1890—The Bankers’ Books Evidence Ordinance 1890

Bill	: G.N. No. 495/1890
First Reading	: 2 October 1890
Second Reading	: 24 October 1890
Third Reading	: 30 October 1890
Commencement	: 30 October 1890

2. 1920 Revised Edition—Ordinance No. 50 (Bankers’ Books Evidence)

Operation	: 28 November 1921
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3. 1926 Revised Edition—Ordinance No. 50 (Bankers’ Books Evidence)

Operation	: 1 August 1926
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4. 1936 Revised Edition—Bankers’ Books Evidence Ordinance (Chapter 17)

Operation	: 1 September 1936
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5. Ordinance 44 of 1949—Bankers’ Books Evidence (Amendment) Ordinance, 1949

Bill	: G.N. No. S 451/1949
First Reading	: 19 October 1949
Second and Third Readings	: 15 November 1949
Commencement	: 23 November 1949

6. 1955 Revised Edition—Evidence (Bankers’ Books) Ordinance (Chapter 5)

Operation	: 1 July 1956
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7. L.N. 71/1965 (G.N. Sp. No. S 39/1965)—Modification of Laws (Evidence) (Borneo States and Singapore) Order, 1965

Commencement	: 4 March 1965
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PART 2
EVIDENCE ACT 1893
(2020 REVISED EDITION)

8. Ordinance III of 1893—The Evidence Ordinance 1893

Bill	: G.N. No. 80/1893
First Reading	: 23 February 1893
Second Reading	: 2 March 1893
Notice of Amendments	: 23 March 1893
Third Reading	: 23 March 1893
Commencement	: 1 July 1893

Note: This Ordinance repealed Act XV of 1852 and Act II of 1855.

9. Ordinance XII of 1895—The Evidence Ordinance Amendment Ordinance 1895

Bill	: G.N. No. 625/1895
First Reading	: 31 October 1895
Second Reading	: 6 November 1895
Third Reading	: 18 November 1895
Commencement	: 18 November 1895

10. Ordinance XXIX of 1907—The Evidence Ordinance Amendment Ordinance 1907

Bill	: G.N. No. 1072/1907
First Reading	: 18 October 1907
Second Reading	: 15 November 1907
Notice of Amendments	: 22 November 1907
Third Reading	: 10 December 1907
Commencement	: 10 December 1907

11. 1920 Revised Edition—Ordinance No. 53 (Evidence)

Operation	: 28 November 1921
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12. Ordinance 32 of 1922—Statute Laws (Revised Edition) Amendment Ordinance, 1922
(Amendments made by section 12(1) read with the Schedule to the above Ordinance)

Bill	: G.N. No. 1158/1922
First Reading	: 14 August 1922
Second Reading	: 11 September 1922

Notice of Amendments	: 23 October 1922
Third Reading	: 23 October 1922
Commencement	: 28 November 1921 (section 12(1) read with the Schedule)

13. 1926 Revised Edition—Ordinance No. 53 (Evidence)

Operation	: 1 August 1926
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14. Ordinance 29 of 1935—Evidence (Amendment) Ordinance 1935

Bill	: G.N. No. 1499/1935
First Reading	: 17 June 1935
Second Reading	: 26 August 1935
Notice of Amendments	: 26 August 1935
Third Reading	: 26 August 1935
Commencement	: 6 September 1935

15. 1936 Revised Edition—Evidence Ordinance (Chapter 13)

Operation	: 1 September 1936
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16. Ordinance 8 of 1955—Revised Edition of the Laws (Miscellaneous Amendments) Ordinance, 1955

(Amendments made by section 2 read with item 2 of the Schedule to the above Ordinance)

Bill	: 45/1954
First Reading	: 14 December 1954
Second and Third Readings	: 28 January 1955
Commencement	: 4 February 1955 (section 2 read with item 2 of the Schedule)

17. 1955 Revised Edition—Evidence Ordinance (Chapter 4)

Operation	: 1 July 1956
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18. G.N. No. S (N.S.) 177/1959—Singapore Constitution (Modification of Laws) (No. 3) Order, 1959

Commencement : 20 November 1959

19. G.N. No. S (N.S.) 178/1959—Singapore Constitution (Modification of Laws) (No. 4) Order, 1959

Commencement : 20 November 1959

20. G.N. No. S (N.S.) 179/1959—Singapore Constitution (Modification of Laws) (No. 5) Order, 1959

Commencement : 20 November 1959

21. Ordinance 72 of 1959—Transfer of Powers (No. 2) Ordinance, 1959

(Amendments made by section 3 read with the Second Schedule to the above Ordinance)

Bill : 31/1959

First Reading : 22 September 1959

Second Reading : 11 November 1959

Notice of Amendments : 11 November 1959

Third Reading : 11 November 1959

Commencement : 20 November 1959 (section 3 read with the Second Schedule)

22. Ordinance 17 of 1960—Evidence (Amendment) Ordinance, 1960

Bill : 14/1959

First Reading : 13 August 1959

Second Reading : 2 September 1959

Select Committee Report : Sessional Paper No. L.A. 2 of 1960

Third Reading : 13 February 1960

Commencement : 26 February 1960

23. L.N. 71/1965 (G.N. Sp. No. S 39/1965)—Modification of Laws (Evidence) (Borneo States and Singapore) Order, 1965

Commencement : 4 March 1965

24. G.N. No. S 39/1966—Modification of Laws (Evidence) Order, 1966

Commencement : 4 March 1966

25. 1966 Reprint—Evidence Ordinance (Chapter 4)

Reprint : 9 March 1966

26. Act 14 of 1969—Statute Law Revision Act, 1969

(Amendments made by section 2 read with the First Schedule to the above Act)

Bill : 22/1969

First Reading : 15 October 1969

Second Reading : 22 December 1969

Notice of Amendments : 22 December 1969

Third Reading : 22 December 1969

Commencement : 2 January 1970 (section 2 read with the First Schedule)

27. 1970 Revised Edition—Evidence Act (Chapter 5)

Operation : 1 March 1971

Note: This Revised Edition incorporated the Evidence (Bankers' Books) Ordinance (Chapter 5, 1955 Revised Edition).

28. Act 11 of 1976—Evidence (Amendment) Act, 1976

Bill : 34/1975

First Reading : 29 July 1975

Second Reading : 19 August 1975

Select Committee Report : Parl. 5 of 1976

Third Reading : 23 July 1976

Commencement : 1 January 1977

29. 1982 Reprint—Evidence Act (Chapter 5)

Reprint : 1 October 1982

30. 1985 Revised Edition—Evidence Act (Chapter 97)

Operation : 30 March 1987

31. Act 28 of 1987—Evidence (Amendment) Act 1987

Bill	: 19/1987
First Reading	: 9 November 1987
Second and Third Readings	: 30 November 1987
Commencement	: 1 February 1988

32. 1990 Revised Edition—Evidence Act (Chapter 97)

Operation	: 15 March 1990
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33. G.N. No. S 414/1992—Evidence Act (Amendment of Schedule) Order 1992

Commencement	: 25 September 1992
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34. Act 29 of 1995—Rapid Transit Systems Act 1995

(Amendments made by section 45 read with paragraph 2 of the Schedule to the above Act)

Bill	: 25/1995
First Reading	: 7 July 1995
Second and Third Readings	: 7 August 1995
Commencement	: 1 September 1995 (section 45 read with paragraph 2 of the Schedule)

35. Act 7 of 1996—Maritime and Port Authority of Singapore Act 1996

(Amendments made by section 121(4) read with item (4) of the Fourth Schedule to the above Act)

Bill	: 46/1995
First Reading	: 5 December 1995
Second and Third Readings	: 18 January 1996
Commencement	: 2 February 1996 (section 121(4) read with item (4) of the Fourth Schedule)

36. Act 8 of 1996—Evidence (Amendment) Act 1996

Bill	: 45/1995
First Reading	: 5 December 1995

Second and Third Readings : 18 January 1996

Commencement : 8 March 1996

37. Act 1 of 1996—Singapore Productivity and Standards Board Act 1995

(Amendments made by section 44 read with item 3 of the Third Schedule to the above Act)

Bill : 39/1995

First Reading : 1 November 1995

Second Reading : 5 December 1995

Notice of Amendments : 5 December 1995

Third Reading : 5 December 1995

Commencement : 1 April 1996 (section 44 read with item 3 of the Third Schedule)

38. Act 7 of 1997—Statutes (Miscellaneous Amendments) Act 1997

(Amendments made by section 6 read with item (5) of the First Schedule and section 7 read with item (14) of the Second Schedule to the above Act)

Bill : 6/1997

First Reading : 11 July 1997

Second and Third Readings : 25 August 1997

Commencement : 1 October 1997 (section 6 read with item (5) of the First Schedule and section 7 read with item (14) of the Second Schedule)

39. 1997 Revised Edition—Evidence Act (Chapter 97)

Operation : 20 December 1997

40. Act 25 of 1998—Electronic Transactions Act 1998

(Amendments made by section 64 of the above Act)

Bill : 23/1998

First Reading : 1 June 1998

Second and Third Readings : 29 June 1998

Commencement : 10 July 1998 (section 64)

41. Act 37 of 1998—Post Office Savings Bank of Singapore (Transfer of Undertakings and Dissolution) Act 1998

(Amendments made by section 19 read with item (4) of the Schedule to the above Act)

Bill	: 34/1998
First Reading	: 31 July 1998
Second Reading	: 12 October 1998
Notice of Amendments	: 12 October 1998
Third Reading	: 12 October 1998
Commencement	: 16 November 1998 (section 19 read with item (4) of the Schedule)

42. Act 41 of 1999—Info-communications Development Authority of Singapore Act 1999

(Amendments made by section 31(1) read with paragraph 8(2) of the Fourth Schedule to the above Act)

Bill	: 36/1999
First Reading	: 11 October 1999
Second and Third Readings	: 23 November 1999
Commencement	: 1 December 1999 (section 31(1) read with paragraph 8(2) of the Fourth Schedule)

43. Act 9 of 2000—Defence Science and Technology Agency Act 2000

(Amendments made by section 34 read with item (2) of the Third Schedule to the above Act)

Bill	: 1/2000
First Reading	: 17 January 2000
Second and Third Readings	: 21 February 2000
Commencement	: 15 March 2000 (section 34 read with item (2) of the Third Schedule)

44. Act 3 of 2001—Intellectual Property Office of Singapore Act 2001

(Amendments made by section 38(1) read with item (3) of the Fourth Schedule to the above Act)

Bill	: 1/2001
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First Reading	: 12 January 2001
Second and Third Readings	: 22 February 2001
Commencement	: 1 April 2001 (section 38(1) read with item (3) of the Fourth Schedule)

45. Act 17 of 2001—Singapore Land Authority Act 2001

(Amendments made by section 38(1) read with item (4) of the Fourth Schedule to the above Act)

Bill	: 17/2001
First Reading	: 5 March 2001
Second and Third Readings	: 19 April 2001
Commencement	: 1 June 2001 (section 38(1) read with item (4) of the Fourth Schedule)

46. G.N. No. S 613/2001—Evidence Act (Amendment of Schedule) Order 2001

Commencement	: 12 December 2001
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47. Act 17 of 2003—Evidence (Amendment) Act 2003

Bill	: 16/2003
First Reading	: 14 August 2003
Second and Third Readings	: 2 September 2003
Commencement	: 26 September 2003

48. Act 3 of 2005—CISCO (Dissolution) Act 2005

(Amendments made by section 16 read with item (3) of the Schedule to the above Act)

Bill	: 52/2004
First Reading	: 19 October 2004
Second and Third Readings	: 25 January 2005
Commencement	: 10 June 2005 (section 16 read with item (3) of the Schedule)

49. Act 51 of 2007—Penal Code (Amendment) Act 2007

(Amendments made by section 107 read with item (3) of the Third Schedule to the above Act)

Bill	: 38/2007
First Reading	: 17 September 2007
Second Reading	: 22 October 2007
Third Reading	: 23 October 2007
Commencement	: 1 February 2008 (section 107 read with item (3) of the Third Schedule)

50. Act 17 of 2009—Civil Aviation Authority of Singapore Act 2009

(Amendments made by section 104 read with item 4 of the Fourth Schedule to the above Act)

Bill	: 10/2009
First Reading	: 23 March 2009
Second and Third Readings	: 13 April 2009
Commencement	: 1 July 2009 (section 104 read with item 4 of the Fourth Schedule)

51. Act 15 of 2010—Criminal Procedure Code 2010

(Amendments made by section 430 read with item 39 of the Sixth Schedule to the above Act)

Bill	: 11/2010
First Reading	: 26 April 2010
Second Reading	: 18 May 2010
Third Reading	: 19 May 2010
Commencement	: 2 January 2011 (section 430 read with item 39 of the Sixth Schedule)

52. G.N. No. S 210/2011—Evidence Act (Amendment of Schedule) Order 2011

Commencement	: 1 May 2011
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53. Act 4 of 2012—Evidence (Amendment) Act 2012

Bill	: 2/2012
First Reading	: 16 January 2012
Second and Third Readings	: 14 February 2012

Commencement : 1 August 2012

54. Act 5 of 2014—Subordinate Courts (Amendment) Act 2014

(Amendments made by section 11(9) read with item 10 of the Schedule to the above Act)

Bill : 26/2013

First Reading : 11 November 2013

Second and Third Readings : 21 January 2014

Commencement : 7 March 2014 (section 11(9) read with item 10 of the Schedule)

55. Act 27 of 2014—Family Justice Act 2014

(Amendments made by section 57 of the above Act)

Bill : 21/2014

First Reading : 8 July 2014

Second Reading : 4 August 2014

Notice of Amendments : 4 August 2014

Third Reading : 4 August 2014

Commencement : 1 October 2014 (section 57)

56. Act 16 of 2013—Status of Children (Assisted Reproduction Technology) Act 2013

(Amendments made by section 16 of the above Act)

Bill : 12/2013

First Reading : 8 July 2013

Second and Third Readings : 12 August 2013

Commencement : 1 October 2014 (section 16)

57. Act 41 of 2014—Statutes (Miscellaneous Amendments — Deputy Attorney-General) Act 2014

(Amendments made by section 4 of the above Act)

Bill : 37/2014

First Reading : 7 October 2014

Second and Third Readings : 4 November 2014

Commencement : 1 January 2015 (section 4)

58. Act 16 of 2016—Statutes (Miscellaneous Amendments) Act 2016

(Amendments made by section 6 of the above Act)

Bill : 15/2016
First Reading : 14 April 2016
Second and Third Readings : 9 May 2016
Commencement : 10 June 2016 (section 6)

59. Act 19 of 2018—Criminal Justice Reform Act 2018

(Amendments made by section 124 of the above Act)

Bill : 14/2018
First Reading : 28 February 2018
Second and Third Readings : 19 March 2018
Commencement : 17 September 2018 (section 124)

60. Act 20 of 2018—Evidence (Amendment) Act 2018

Bill : 15/2018
First Reading : 28 February 2018
Second and Third Readings : 19 March 2018
Commencement : 31 October 2018

61. G.N. No. S 174/2019—Evidence Act (Amendment of Second Schedule) Order 2019

Commencement : 1 April 2019

62. G.N. No. S 738/2019—Evidence Act (Amendment of Second Schedule) (No. 2) Order 2019

Commencement : 1 December 2019

63. Act 15 of 2019—Criminal Law Reform Act 2019

(Amendments made by section 174 of the above Act)

Bill : 6/2019
First Reading : 11 February 2019

Second Reading	: 6 May 2019
Notice of Amendments	: 6 May 2019
Third Reading	: 6 May 2019
Commencement	: 1 January 2020 (section 174)

64. Act 30 of 2019—Children and Young Persons (Amendment) Act 2019

(Amendments made by section 64 of the above Act)

Bill	: 22/2019
First Reading	: 5 August 2019
Second and Third Readings	: 3 September 2019
Commencement	: 1 July 2020 (section 64)

65. Act 40 of 2019—Supreme Court of Judicature (Amendment) Act 2019

(Amendments made by section 28(1) read with item 52 of the Schedule to the above Act)

Bill	: 32/2019
First Reading	: 7 October 2019
Second Reading	: 5 November 2019
Notice of Amendments	: 5 November 2019
Third Reading	: 5 November 2019
Commencement	: 2 January 2021 (section 28(1) read with item 52 of the Schedule)

66. Act 38 of 2020—Apostille Act 2020

(Amendments made by section 21(1) of the above Act)

Bill	: 35/2020
First Reading	: 5 October 2020
Second and Third Readings	: 2 November 2020
Commencement	: 16 September 2021 (section 21(1))

67. G.N. No. S 831/2021—Evidence Act (Amendment of Second Schedule) Order 2021

Commencement	: 1 November 2021
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68. 2020 Revised Edition—Evidence Act 1893

Operation : 31 December 2021

69. Act 33 of 2021—Judicial Service (Miscellaneous Amendments) Act 2021

Bill : 30/2021

First Reading : 4 October 2021

Second and Third Readings : 3 November 2021

Commencement : 14 January 2022

70. Act 25 of 2021—Courts (Civil and Criminal Justice) Reform Act 2021
(Amendments made by Part 7 of the above Act)

Bill : 18/2021

First Reading : 26 July 2021

Second and Third Readings : 14 September 2021

Commencement : 1 April 2022

71. Act 23 of 2022—Public Defenders Act 2022
(Amendments made by the above Act)

Bill : 17/2022

First Reading : 4 July 2022

Second and Third Readings : 1 August 2022

Commencement : 1 December 2022

72. Act 39 of 2022—Penal Code (Amendment) Act 2022
(Amendments made by the above Act)

Bill : 31/2022

First Reading : 20 October 2022

Second and Third Readings : 29 November 2022

Commencement : 3 January 2023

73. Act 29 of 2022—National Symbols Act 2022
(Amendments made by the above Act)

Bill	: 21/2022
First Reading	: 2 August 2022
Second and Third Readings	: 13 September 2022
Commencement	: 1 August 2023

74. Act 5 of 2025—Electronic Gazette and Legislation Act 2025

Bill	: 47/2024
First Reading	: 11 November 2024
Second and Third Readings	: 7 January 2025
Commencement	: 9 March 2025

Abbreviations

(updated on 29 August 2022)

G.N.	Gazette Notification
G.N. Sp.	Gazette Notification (Special Supplement)
L.A.	Legislative Assembly
L.N.	Legal Notification (Federal/Malaysian)
M.	Malaya/Malaysia (including Federated Malay States, Malayan Union, Federation of Malaya and Federation of Malaysia)
Parl.	Parliament
S	Subsidiary Legislation
S.I.	Statutory Instrument (United Kingdom)
S (N.S.)	Subsidiary Legislation (New Series)
S.S.G.G.	Straits Settlements Government Gazette
S.S.G.G. (E)	Straits Settlements Government Gazette (Extraordinary)

COMPARATIVE TABLE

EVIDENCE ACT 1893

This Act has undergone renumbering in the 2020 Revised Edition. This Comparative Table is provided to help readers locate the corresponding provisions in the last Revised Edition.

2020 Ed.	1997 Ed.
—	80A—(6) [<i>Deleted by Act 20 of 2018</i>]
167—(3) and (4)	167—(3)